

## COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

### ARTICLE 244: TWO CONSTITUTIONAL MODELS

Protection and territorial self-government for Scheduled and tribal areas

#### SUBSTANTIVE EQUALITY

land + culture + voice + accountable development

#### FIFTH SCHEDULE

|             |                                          |
|-------------|------------------------------------------|
| Article     | 244(1)                                   |
| Territory   | Notified Scheduled Areas in 10 States    |
| Core body   | Tribes Advisory Council - advisory       |
| Law route   | Governor adapts laws / makes regulations |
| Assent      | President for Governor regulations       |
| Local layer | PESA Gram Sabha + Panchayats             |

#### SIXTH SCHEDULE

|           |                                               |
|-----------|-----------------------------------------------|
| Article   | 244(2)                                        |
| Territory | AMTM tribal areas                             |
| Core body | Elected District / Regional Councils          |
| Power     | Specified laws, services, courts and taxes    |
| Assent    | Governor for council laws                     |
| Limit     | Autonomous; not sovereign or State-equivalent |

**PESA applies to Fifth Schedule areas; FRA complements rights and conservation.**

*Original deterministic study visual; labels are explanatory, not textual quotations.*

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

# Polity 26 - Scheduled and Tribal Areas - Complete Topic Package

**Subject:** Indian Polity | **Topic:** 26 | **GS-II + Prelims** | **Export date:** 2026-08-19 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] verified constitutional, statutory, judicial or official proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated legal or institutional control; [LIMIT] qualification preventing overstatement.

## Package method, source priority and current legal control

- [FACT] Source order followed: `basic/Scheduled-and-Tribal-Areas.md` -> `advanced/26_Scheduled-and-Tribal-Areas.md` -> Polity 23 Panchayati Raj, Polity 22 Special Provisions, Fundamental Rights, Supreme Court, Environment/FRA and EIA owners only for cross-links -> audited PYQ routing ledgers and locally held official Prelims papers/keys -> authoritative Constitution, India Code, Ministry of Tribal Affairs, Ministry of Panchayati Raj, Supreme Court and official State/ADC sources. Qdrant was not used.
- [CURRENT] Legal and institutional control date is **19 August 2026, Asia/Kolkata**.
- [FACT] Article **244(1)** applies the Fifth Schedule to Scheduled Areas and Scheduled Tribes in States other than Assam, Meghalaya, Tripura and Mizoram. Article **244(2)** applies the Sixth Schedule to tribal areas in those four States.
- [CURRENT] The official Ministry of Panchayati Raj state-wise document identifies notified Fifth Schedule areas in **10 States**: Andhra Pradesh, Telangana, Chhattisgarh, Gujarat, Himachal Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha and Rajasthan.
- [LIMIT] A State's inclusion in that list does not make the whole State a Scheduled Area. Only territory covered by the operative Presidential Orders has that status. Presence of a Scheduled Tribe population also does not by itself notify a Scheduled Area.
- [CURRENT] The Ministry of Panchayati Raj's official PESA-rules listing contains rules for nine of the ten PESA States, including **Jharkhand Rules, 2025**; it does not list a separate notified Odisha PESA Rules instrument. This is a dated implementation control, not a claim that statutory compliance is complete in the nine.
- [CURRENT] Ladakh remains a Union Territory outside the Sixth Schedule. Official MHA material records continuing consultation through the High-Powered Committee process; no official notification granting Sixth Schedule status was located by the control date.
- [LIMIT] The Fifth Schedule assigns important functions to the Governor but does not textually convert every such function into unreviewable personal discretion. Do not state that the Governor may always disregard ministerial advice.
- [LIMIT] A Tribal Advisory Council is advisory. A Sixth Schedule council is autonomous but not sovereign, not a State legislature and not outside the State's executive authority.
- [LIMIT] PESA uses different legal verbs - **approve, identify, certify, consult, recommend, own, regulate, control and restore**. It does not create one undifferentiated Gram Sabha veto over every project.
- [LIMIT] Current dashboards, claim counts, title acreage, council officeholders and programme totals change. This package uses durable legal design and dated official controls rather than freezing unstable totals.

### Authoritative control set

1. Constitution of India, Legislative Department, Articles 244, 244A, 275(1), 339 and the Fifth and Sixth Schedules.
2. Ministry of Tribal Affairs, official *Scheduled Areas* note and Presidential-Order inventory.
3. Ministry of Panchayati Raj, official state-wise notified Fifth Schedule areas, PESA Act and State PESA rules listings.
4. Provisions of the Panchayats (Extension to the Scheduled Areas) Act, 1996, section 4, India Code.
5. Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, especially sections 2, 3, 4, 5 and 6, India Code.

6. *Samatha v. State of Andhra Pradesh*, (1997) 8 SCC 191, read with the Andhra Pradesh Scheduled Areas Land Transfer Regulation and later scope qualification.
7. *Orissa Mining Corporation Ltd. v. Ministry of Environment and Forest*, Supreme Court, 18 April 2013.
8. Official Assam, Meghalaya, Tripura and Mizoram government/ADC material for current institutional examples.
9. Official UPSC papers locally held for 2019, 2023, 2024, 2025 and 2026 and official Set-A keys locally held for 2024-2025.

## Roadmap

| Stage                 | Coverage                                                           | Exam outcome                           |
|-----------------------|--------------------------------------------------------------------|----------------------------------------|
| Rationale and history | exclusion, protection and self-government                          | explains why two Schedules exist       |
| Article 244 map       | Fifth, Sixth, 244A, 275 and 339                                    | solves provision traps                 |
| Fifth Schedule        | declaration, executive chain, TAC and Governor powers              | handles protective administration      |
| Sixth Schedule        | districts, regions, councils and powers                            | handles autonomous government          |
| Exact comparison      | Fifth, Sixth, Article 371 and ordinary Panchayats                  | prevents false equivalence             |
| PESA                  | section 4 power verbs and limits                                   | answers Gram Sabha questions precisely |
| FRA                   | claims, CFR and conservation duties                                | connects tenure with self-governance   |
| Land and mining       | PESA, FRA, State land law and cases                                | builds rights-development analysis     |
| Accountability        | Governor, State, Union, councils and Gram Sabha                    | identifies institutional gaps          |
| Current reform        | rules, capacity, convergence and review                            | adds dated evidence safely             |
| Workbook              | six routed Prelims demands, 48 rotated MCQs and eight solved Mains | converts doctrine into marks           |

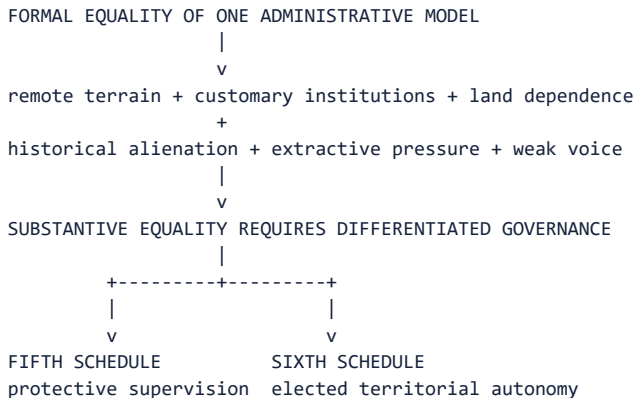
## Scope ownership and cross-links

- **Polity 22 - Special Provisions:** owns Article 371 family, Article 370 and the larger asymmetric-federalism framework. This package distinguishes those provisions from Fifth/Sixth Schedule protection.
- **Polity 23 - Panchayati Raj:** owns Part IX, ordinary Gram Sabha and PRI architecture. This package owns Article 243M exclusion and PESA's Scheduled-Area modifications.
- **Polity 07 - Fundamental Rights / DPSP:** owns Articles 14, 19, 21, 25-26, 29, 38, 39(b), 46 and Article 300A doctrine. This package applies them to tribal land, culture, religion and dignified participation.
- **Polity 18/21 - Judiciary:** owns judicial review and court structure. This package owns the tribal-governance holdings and limits of *Samatha* and *Orissa Mining Corporation*.
- **Environment 11 - Forest Rights Act:** owns full forest-law doctrine, eligibility and claims detail. This package owns the governance interface between FRA, PESA and the Schedules.
- **Environment 16 / Economy land-mineral owners:** own EIA, forest clearance, mineral law and land acquisition in depth. This package owns the constitutional/community decision chain.
- **Governance:** owns participatory governance, social audit and delivery systems. This package uses them only to design accountability in Scheduled Areas.
- [LIMIT] Cross-links prevent duplicate ownership but do not make this package dependent on another file for answering a Fifth/Sixth Schedule, PESA or tribal-autonomy question.

# PART I - Complete foundation, core and advanced learning session

## 01. Why special tribal-area administration exists

### Visual 1 - The constitutional problem

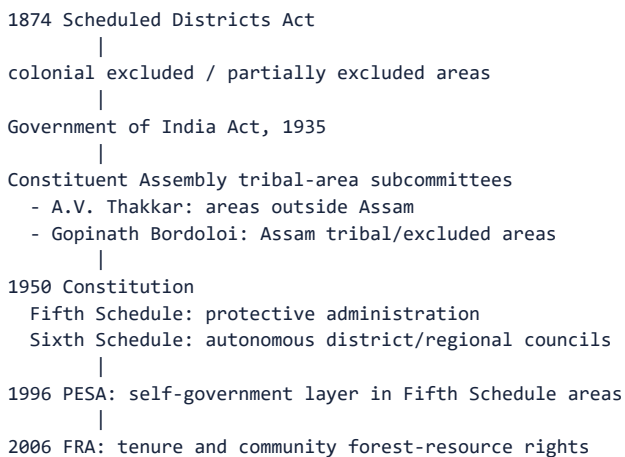


Caption: The Schedules are devices of substantive equality: they differentiate administration to protect land, culture, voice and self-government.

- [FACT] Part X recognises that ordinary State administration may require constitutional modification in specified tribal regions.
- [ANALYSIS] The central design question is not "special privilege versus equality" but whether identical rules would reproduce unequal bargaining power and historical dispossession.
- [LIMIT] Protection can become paternalism if communities remain subjects of administration rather than participants in decisions.

## 02. Historical evolution

### Visual 2 - From exclusion to negotiated constitutionalism



- [FACT] Colonial "excluded" arrangements largely insulated administration from representative provincial institutions while concentrating power in executive authorities.
- [FACT] The Constitution retained differentiation but added representative, welfare and rights-oriented purposes.
- [ANALYSIS] The Fifth Schedule partially transforms the colonial guardian model; the Sixth Schedule moves further toward territorial self-government.
- [LIMIT] Constitutional continuity in special administration does not mean identical purposes: democratic accountability and tribal agency are now controlling values.

### 03. Article 244 master map

Visual 3 - The constitutional spine

| Provision      | Territorial reach                                                            | Core function                                                         |
|----------------|------------------------------------------------------------------------------|-----------------------------------------------------------------------|
| Article 244(1) | Scheduled Areas and ST administration outside the four Sixth Schedule States | applies Fifth Schedule                                                |
| Article 244(2) | tribal areas in Assam, Meghalaya, Tripura and Mizoram                        | applies Sixth Schedule                                                |
| Article 244A   | Assam only                                                                   | permits Parliament to create an autonomous State with legislature/CoM |
| Article 275(1) | States requiring specified tribal-welfare/Scheduled-Area support             | grants-in-aid                                                         |
| Article 339(1) | Scheduled Areas and ST welfare                                               | presidential commission                                               |
| Article 339(2) | States                                                                       | Union directions on essential ST-welfare schemes                      |

- [FACT] Article 244 is the gateway; the detailed institutions are in the Schedules.
- [ANALYSIS] Articles 275 and 339 add fiscal and supervisory support to the territorial design.
- [LIMIT] Article 244A is an enabling power for an autonomous State within Assam, not an automatic consequence of a Sixth Schedule council.

### 04. Terminology that decides close options

Visual 4 - Scheduled Area, tribal area and Scheduled Tribe

| Term            | Legal source                | Who specifies/organises?                                                   | Exam trap                                   |
|-----------------|-----------------------------|----------------------------------------------------------------------------|---------------------------------------------|
| Scheduled Area  | Fifth Schedule, paragraph 6 | President by order; specified alterations involve Governor consultation    | not the same as any area with ST population |
| tribal area     | Sixth Schedule Parts I-IV   | constitutional list, with gubernatorial organisation/reorganisation powers | not a Fifth Schedule label                  |
| Scheduled Tribe | Article 342                 | President specifies for a State/UT; Parliament alters by law               | Governor does not declare the ST list       |
| PESA village    | PESA section 4(b)           | habitation/hamlet-based statutory conception                               | need not mirror an ordinary revenue village |

**Memory rule: President schedules the area and tribe list through different constitutional routes; Governor organises Sixth Schedule districts/regions; PESA recognises habitation-based village life.**

### 05. Current Fifth Schedule State map

Visual 5 - Officially supported 10-State inventory

WEST / CENTRAL BELT

Gujarat - Rajasthan - Maharashtra - Madhya Pradesh - Chhattisgarh

EASTERN BELT

Jharkhand - Odisha

SOUTH / DECCAN

Andhra Pradesh - Telangana

HIMALAYAN

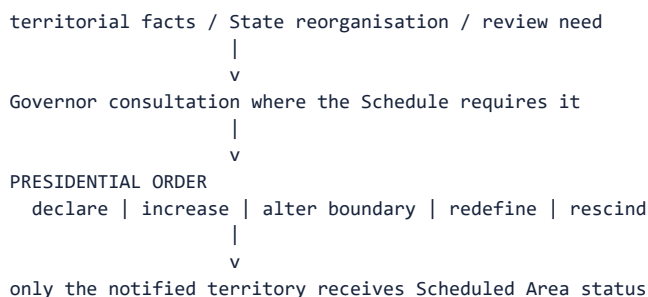
Himachal Pradesh

- [CURRENT] The official Ministry of Panchayati Raj state-wise document lists these 10 States.
- [FACT] Their legal coverage comes from operative Presidential Orders, including post-State-reorganisation application.

- [LIMIT] District names and boundaries can change. Memorise the State inventory and declaration mechanism; verify granular district lists from current orders before quoting them.

## 06. How a Scheduled Area is declared or changed

### Visual 6 - Fifth Schedule paragraph 6 process



- [FACT] The President may declare an area a Scheduled Area.
- [FACT] The Schedule permits increase, alteration, redefinition and rescission through specified presidential orders; consultation with the Governor is required in the cases stated in paragraph 6.
- [LIMIT] Consultation is not the same as gubernatorial consent.

## 07. Administrative criteria versus constitutional power

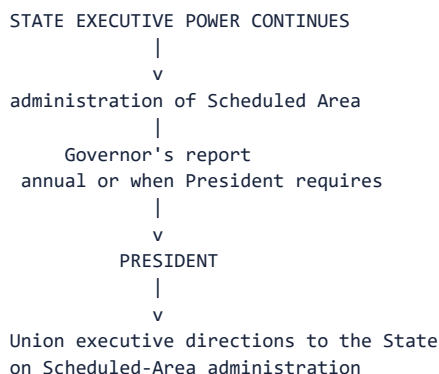
### Visual 7 - Two-layer declaration test

| Layer                            | Content                                                                                                 | Legal weight                                            |
|----------------------------------|---------------------------------------------------------------------------------------------------------|---------------------------------------------------------|
| constitutional authority         | President's order under Fifth Schedule paragraph 6                                                      | creates/changes legal status                            |
| official administrative criteria | tribal preponderance;<br>compactness/reasonable size; viable unit;<br>comparative economic backwardness | guides identification but does not replace notification |

- [FACT] The Ministry of Tribal Affairs identifies those four administrative criteria.
- [ANALYSIS] Criteria discipline the area approach by linking protection to demographic, territorial and developmental realities.
- [LIMIT] Satisfying a criterion does not itself make an area Scheduled; notification remains indispensable.

## 08. Fifth Schedule executive chain

### Visual 8 - State administration under Union supervision

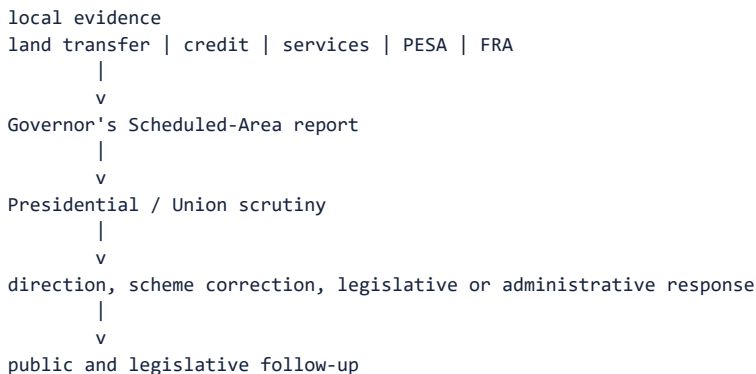


- [FACT] The State does not lose executive power merely because an area is scheduled.
- [FACT] The Governor reports annually, or whenever required by the President, on administration of Scheduled Areas.
- [FACT] Union executive power extends to giving directions to the State regarding such administration.

- [LIMIT] The Schedule creates supervision by report and direction, not an automatic Union takeover of total administration.

## 09. Accountability meaning of the Governor's report

### Visual 9 - Report-to-remedy loop



- [ANALYSIS] The report can convert local constitutional failures into an intergovernmental accountability record.
- [LIMIT] The text does not itself prescribe a public template, tabling deadline or consequence for a weak report; institutional design must supply those controls.

## 10. Tribes Advisory Council: composition

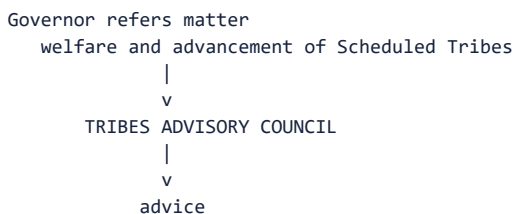
### Visual 10 - TAC design

| Feature            | Fifth Schedule rule                                                                     |
|--------------------|-----------------------------------------------------------------------------------------|
| where mandatory    | each State having Scheduled Areas                                                       |
| possible extension | President may direct a TAC in a State having STs but no Scheduled Areas                 |
| maximum size       | 20 members                                                                              |
| representation     | as nearly as may be, three-fourths representatives of STs in State Legislative Assembly |
| shortfall          | remaining seats filled by other members of those tribes                                 |

- [FACT] TAC composition seeks a legislative-representative connection rather than a purely bureaucratic advisory body.
- [LIMIT] "Three-fourths ST MLAs" is shorthand. The Schedule says representatives of STs in the Assembly and supplies a shortfall rule.

## 11. TAC duty and its ceiling

### Visual 11 - Advisory, not legislative

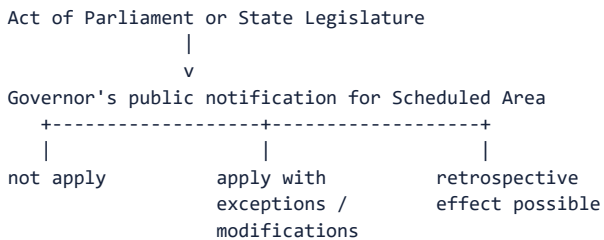


NOT: statute | binding veto | executive order | court judgment

- [FACT] The TAC advises on matters concerning welfare and advancement of STs that the Governor refers to it.
- [ANALYSIS] Agenda control matters: an advisory body cannot scrutinise what is never referred.
- [LIMIT] Do not describe TAC advice as legally binding or TAC as the Fifth Schedule equivalent of an Autonomous District Council.

## 12. Governor's law-application power

### Visual 12 - Paragraph 5(1) shield



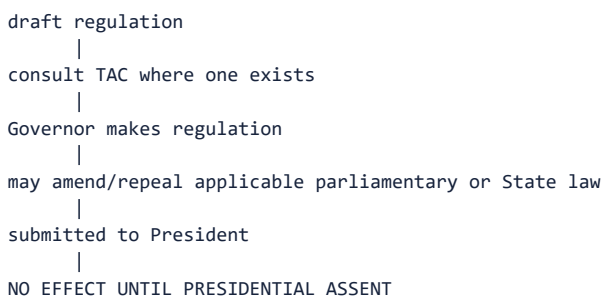
- [FACT] The Governor may direct that a parliamentary or State Act shall not apply to a Scheduled Area or shall apply subject to exceptions and modifications.
- [FACT] The direction may have retrospective effect.
- [ANALYSIS] This is a constitutional adaptation power: general law can be filtered through local land, custom and institutional realities.
- [LIMIT] It is not a general power to suspend the Constitution or Fundamental Rights.

## 13. Governor's regulation power

### Visual 13 - Paragraph 5(2) protective subjects

| Regulation field                                          | Protective purpose         |
|-----------------------------------------------------------|----------------------------|
| peace and good government of a Scheduled Area             | tailored administration    |
| prohibit/restrict transfer of land by or among ST members | prevent alienation         |
| regulate allotment of land to ST members                  | secure access              |
| regulate money-lending to ST members                      | reduce exploitative credit |

### Visual 14 - Regulation validity chain



- [FACT] Presidential assent is a condition of effect.
- [FACT] Consultation with the TAC is required before making such regulations where a TAC exists.
- [LIMIT] PESA later adds broader statutory self-government functions; it does not erase the constitutional regulation route.

## 14. Governor discretion: safe answer rule

### Visual 15 - Text, convention and review

| Proposition                            | Safe treatment                                                         |
|----------------------------------------|------------------------------------------------------------------------|
| Schedule says "Governor may"           | [FACT] identifies the constitutional office holding the power          |
| Governor acts personally in every case | [LIMIT] do not assert without a specific constitutional/judicial basis |
| advice can never matter                | [LIMIT] overstatement                                                  |



| Proposition                      | Safe treatment                                                                   |
|----------------------------------|----------------------------------------------------------------------------------|
| action/inaction is beyond review | [LIMIT] constitutional power remains bounded by purpose, law and judicial review |

- [ANALYSIS] The exam-worthy criticism is not that the Governor owns sovereign tribal policy; it is that a protective constitutional power may remain under-used within an executive system dominated by ordinary State priorities.

## 15. Article 339: commission and Union directions

### Visual 16 - Article 339's two clauses

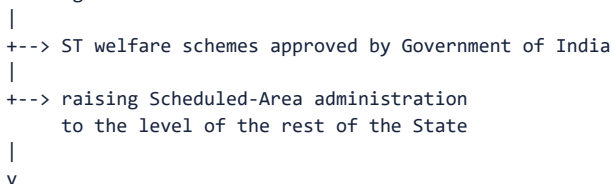
| Clause | Power                                                                                                      | Precision                                            |
|--------|------------------------------------------------------------------------------------------------------------|------------------------------------------------------|
| 339(1) | President may appoint a commission at any time and was required to do so after ten years from commencement | examine Scheduled-Area administration and ST welfare |
| 339(2) | Union may direct a State on drawing up/executing schemes specified as essential for ST welfare             | scheme-specific welfare direction                    |

- [FACT] The first Scheduled Areas and Scheduled Tribes Commission was chaired by U.N. Dhebar; a later commission was chaired by Dilip Singh Bhuria.
- [LIMIT] Article 339(2) welfare-scheme directions and Fifth Schedule paragraph 3 directions on Scheduled-Area administration are related but textually distinct.

## 16. Article 275(1): fiscal support

### Visual 17 - Constitutional finance chain

Parliament provides grants-in-aid



State implementation + constitutional accountability

- [FACT] Article 275(1) creates a dedicated constitutional grant route for specified tribal-welfare and Scheduled-Area administration needs.
- [ANALYSIS] Fiscal equalisation is essential because formal autonomy without administrative capacity can reproduce dependence.
- [LIMIT] A grant is not proof of devolution, rights recognition or outcomes.

## 17. Fifth Schedule institutional dashboard

### Visual 18 - Who does what?

| Actor                     | Core role                                                           | Accountability risk                         |
|---------------------------|---------------------------------------------------------------------|---------------------------------------------|
| President/Union           | declare areas; assent regulations; receive reports; give directions | distant supervision                         |
| Governor                  | report; refer to TAC; adapt laws; make regulations                  | opacity or dormancy                         |
| State government          | day-to-day administration and implementation                        | conflict with extraction/revenue priorities |
| TAC                       | advice on referred welfare/advancement matters                      | weak agenda and non-binding advice          |
| Gram Sabha under PESA/FRA | specified participatory, resource and rights functions              | capacity, record and enforcement gaps       |

### Visual 19 - Fifth Schedule performance equation

constitutional power

- x timely use
- x community participation
- x enforceable records
- x fiscal/administrative capacity
- = effective protection

- [ANALYSIS] A strong text can deliver weak protection if any multiplier approaches zero.

## 18. Sixth Schedule territorial map

### Visual 20 - Four-State constitutional field

```

ASSAM      MEGHALAYA    TRIPURA    MIZORAM
  |           |           |           |
autonomous districts and, where applicable, autonomous regions
  |           |           |           |
District / Regional Councils under the Sixth Schedule

```

- [FACT] The Sixth Schedule operates only in Assam, Meghalaya, Tripura and Mizoram.
- [LIMIT] Nagaland, Manipur and Arunachal Pradesh have other constitutional/statutory arrangements; do not add them to the Sixth Schedule list.

## 19. Autonomous district and autonomous region

### Visual 21 - Territorial nesting

```

STATE
  |
  +--> AUTONOMOUS DISTRICT
        |
        +--> one principal tribal community: District Council
        |
        +--> different Scheduled Tribes in parts of district
              |
              v
            AUTONOMOUS REGIONS
              |
              v
          Regional Councils

```

- [FACT] Tribal areas in each Schedule part are administered as autonomous districts.
- [FACT] Where different STs inhabit an autonomous district, the Governor may divide it into autonomous regions.
- [LIMIT] An autonomous district remains within the State and subject to the Constitution; it is not a sovereign enclave.

## 20. Governor's territorial organisation power

### Visual 22 - Reorganisation tools

| Governor may by public notification | Constitutional effect     |
|-------------------------------------|---------------------------|
| include/exclude an area             | changes territorial reach |
| create a new autonomous district    | adds a district unit      |
| increase/decrease area              | changes boundary          |
| unite parts                         | consolidates units        |
| define boundaries                   | settles territorial line  |
| alter name                          | changes designation       |

- [FACT] The Schedule gives the Governor substantial territorial-organisation power, subject to its procedures.
- [LIMIT] Reorganisation is not equivalent to State creation under Articles 2-3.

## 21. Council composition: ordinary model and exceptions

### Visual 23 - Ordinary paragraph 2 model

DISTRICT COUNCIL: not more than 30 members

```

|
+--> not more than 4 nominated by Governor
|
+--> remainder elected on adult suffrage
  
```

elected term: ordinarily 5 years

nominated tenure: pleasure of Governor

- [FACT] The ordinary model is "up to 30", not an invariable 30.
- [FACT] Special constitutional amendments create exceptions.

### Visual 24 - Bodoland exception

| Ordinary council          | Bodoland Territorial Council special design |
|---------------------------|---------------------------------------------|
| up to 30                  | 46 members                                  |
| up to 4 nominated         | 40 elected + 6 Governor-nominated           |
| general paragraph 2 model | special Assam amendment architecture        |

- [CURRENT] Assam's official portal identifies BTC, Karbi Anglong and Dima Hasao/North Cachar Hills councils as its Sixth Schedule autonomous-council institutions.
- [LIMIT] Do not generalise BTC's composition or subject list to all councils.

## 22. Current institutional examples

### Visual 25 - State-wise council examples

| State     | Officially supported examples                                                                                    | Safe recall                                                            |
|-----------|------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------|
| Assam     | Bodoland Territorial Council; Karbi Anglong Autonomous Council; Dima Hasao/North Cachar Hills Autonomous Council | special Assam amendments matter                                        |
| Meghalaya | Khasi Hills, Jaintia Hills and Garo Hills ADCs                                                                   | State department scrutinises council instruments before Governor route |
| Tripura   | Tripura Tribal Areas Autonomous District Council                                                                 | brought under Sixth Schedule from 1985                                 |
| Mizoram   | Chakma, Lai and Mara ADCs                                                                                        | distinct councils plus Article 371G State-level protection             |

- [LIMIT] Council names, rules and officeholders are institution-specific. The constitutional power map is common only to the extent the Schedule says so.

## 23. Special Assam arrangements

### Visual 26 - Assam's layered autonomy

SIXTH SCHEDULE ORDINARY POWERS

```

|
+--> paragraph 3A: additional subjects for
|   North Cachar Hills and Karbi Anglong councils
|
+--> paragraph 3B: enlarged subject allocation
|   for Bodoland Territorial Council
|
+--> Article 244A: Parliament may create
|   an autonomous State within Assam
|   with legislature and Council of Ministers
  
```

- [FACT] Paragraphs 3A and 3B are constitutionally embedded Assam-specific enlargements.
- [ANALYSIS] The Sixth Schedule is therefore asymmetric even within the four-State field.

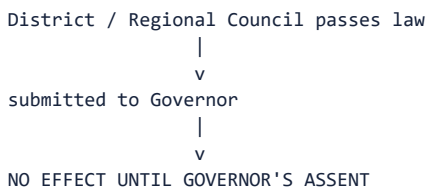
- [LIMIT] Article 244A's autonomous-State possibility is distinct from the current legal status of an ADC and does not convert BTC, KAAC or the Dima Hasao council into a State.

## 24. Sixth Schedule legislative powers

**Visual 27 - Paragraph 3 subject map**

| Council law field      | Core scope                                               |
|------------------------|----------------------------------------------------------|
| land                   | allotment, occupation or use, other than reserved forest |
| forests                | management of forests other than reserved forests        |
| water                  | canals/watercourses for agriculture                      |
| cultivation            | regulation of shifting cultivation                       |
| local institutions     | village/town committees and administration               |
| leadership             | appointment/succession of chiefs or headmen              |
| family/property custom | inheritance                                              |
| personal/customary law | marriage, divorce and social customs                     |

**Visual 28 - Council-law validity chain**



- [FACT] These powers are legislative in character and materially stronger than TAC advice.
- [LIMIT] The subject list is specified and bounded; a council does not possess the plenary competence of a State legislature.

## 25. Reserved forest and mineral traps

**Visual 29 - What paragraph 3 does not give**

| Tempting claim                                  | Correct position                                                                           |
|-------------------------------------------------|--------------------------------------------------------------------------------------------|
| council controls every forest                   | paragraph 3 excludes reserved forests                                                      |
| council owns all minerals                       | Schedule provides specified regulation/revenue arrangements, not blanket subsoil ownership |
| council may legislate on any State List subject | competence is schedule- and amendment-specific                                             |
| Governor assent equals President assent         | ordinary council laws use Governor assent; Fifth Schedule regulations use President assent |

- [ANALYSIS] UPSC often converts one omitted adjective - "reserved" or "specified" - into the decisive close-option trap.

## 26. Sixth Schedule executive functions

### Visual 30 - Local administration basket

District Council

- |
- +--> primary schools
- +--> dispensaries
- +--> markets and cattle pounds
- +--> ferries and fisheries
- +--> roads and specified transport/waterways
- +--> other entrusted State functions

- [FACT] Paragraph 6 authorises councils to establish, construct or manage specified local institutions and services.
- [FACT] The Governor may entrust additional functions relating to subjects such as agriculture, animal husbandry, community projects, cooperatives, social welfare and village planning.
- [LIMIT] Actual functional transfer depends on the applicable constitutional amendment, State-council arrangements, rules, staff and finance.

## 27. Sixth Schedule judicial powers

### Visual 31 - Customary justice boundary

dispute / offence arises in autonomous area

|

are all parties Scheduled Tribes within the relevant area?

+-----+-----+

yes

no

|

village council / District Council court may have specified jurisdiction

|

ordinary judicial system, subject to applicable law

- [FACT] Paragraph 4 enables village councils or courts and appellate arrangements for specified cases within the tribal-party boundary.
- [FACT] The Governor frames/approves important jurisdictional and procedural rules under the Schedule.
- [LIMIT] These bodies are not unrestricted substitutes for constitutional High Courts or the entire criminal-justice system.

## 28. Sixth Schedule fiscal powers

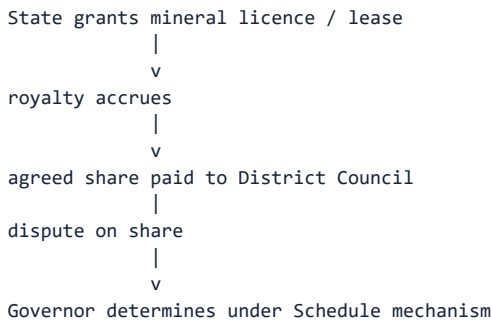
### Visual 32 - Revenue basket

| Power                | Examples under the Schedule                                                                 |
|----------------------|---------------------------------------------------------------------------------------------|
| land revenue         | assessment and collection                                                                   |
| taxes                | lands/buildings; professions/trades/callings/employment; animals, vehicles and boats        |
| local levies         | entry of goods into markets; tolls; taxes for maintenance of schools, dispensaries or roads |
| markets and services | fees and local-service revenue under valid law                                              |
| funds                | District and Regional Funds with prescribed accounting/audit                                |

- [FACT] Councils have constitutionally recognised revenue powers that a Fifth Schedule TAC does not possess.
- [LIMIT] The exact levy must fit the Schedule and valid council law; "fiscal autonomy" does not mean immunity from audit, State law or constitutional limits.

## 29. Mineral royalty arrangement

### Visual 33 - Paragraph 9 flow



- [FACT] The Schedule contemplates a share of mineral royalties for the District Council.
- [ANALYSIS] Revenue sharing can internalise some local costs but cannot substitute for rights compliance, environmental appraisal or rehabilitation.
- [LIMIT] A royalty share is not ownership of all minerals and is not community consent.

## 30. Application of Parliament and State laws

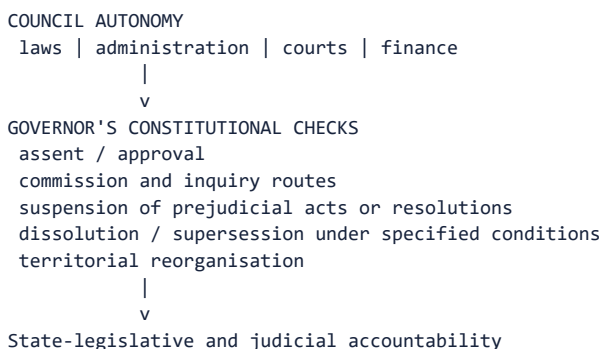
### Visual 34 - State-specific legal filters

| State field | Schedule technique                                                                           |
|-------------|----------------------------------------------------------------------------------------------|
| Assam       | special rules on application of State/parliamentary laws to autonomous districts and regions |
| Meghalaya   | distinct paragraph 12A route                                                                 |
| Tripura     | distinct paragraph 12AA route                                                                |
| Mizoram     | distinct paragraph 12B route                                                                 |

- [FACT] The Sixth Schedule contains separate State-specific provisions on whether and how laws apply.
- [LIMIT] Avoid the oversimplified sentence "Central and State laws do not apply unless the council agrees." The correct answer must identify that applicability, modification and notification rules vary by State and subject.

## 31. Governor's checks on councils

### Visual 35 - Autonomy with constitutional brakes



- [FACT] The Schedule authorises gubernatorial intervention through specified procedures when council action threatens safety/public order or when administration requires inquiry and reconstitution.
- [LIMIT] These are conditioned constitutional controls, not a free-standing power to erase autonomy for political convenience.

## 32. President's role in the Sixth Schedule

### Visual 36 - Do not import the Fifth Schedule assent rule

| Function                                          | Primary constitutional actor                                                            |
|---------------------------------------------------|-----------------------------------------------------------------------------------------|
| ordinary council law assent                       | Governor                                                                                |
| council rules/regulations where Schedule requires | Governor approval/assent                                                                |
| Article 275(1) grants                             | Union/Parliamentary constitutional finance                                              |
| amendment of Sixth Schedule                       | Parliament under paragraph 21, treated as not an Article 368 amendment for that purpose |
| routine approval of every ADC decision            | <b>not the President</b>                                                                |

- [FACT] The President is not the routine assent authority for Sixth Schedule council laws.
- [LIMIT] Union legislation, constitutional finance and parliamentary amendment remain important; autonomy is nested within the Union-State Constitution.

## 33. Fifth versus Sixth Schedule: exact comparison

### Visual 37 - Master comparison matrix

| Dimension                | Fifth Schedule                                        | Sixth Schedule                                                             |
|--------------------------|-------------------------------------------------------|----------------------------------------------------------------------------|
| Article                  | 244(1)                                                | 244(2)                                                                     |
| territory                | notified Scheduled Areas in 10 States                 | tribal areas in Assam, Meghalaya, Tripura, Mizoram                         |
| territorial status-maker | President declares Scheduled Area                     | Constitution lists areas; Governor organises/reorganises districts/regions |
| core theory              | protective supervision                                | territorial self-government                                                |
| main representative body | TAC, advisory                                         | elected District/Regional Council                                          |
| law-making               | Governor adapts laws/makes regulations                | councils legislate on specified subjects                                   |
| assent                   | President for Governor's regulations                  | Governor for council laws                                                  |
| executive power          | State continues; Union directions                     | State authority continues; councils manage specified functions             |
| courts                   | ordinary system; special laws may operate             | village/council courts for specified tribal-party cases                    |
| taxation                 | no TAC taxation power                                 | councils assess land revenue and specified taxes                           |
| local-government statute | PESA applies                                          | PESA does not apply                                                        |
| autonomy ceiling         | no elected territorial legislature in Schedule itself | substantial but subject-specific and supervised                            |

### Visual 38 - One-line memory contrast

FIFTH = AREA + GOVERNOR/PRESIDENT + TAC + PESA  
 SIXTH = DISTRICT/REGION + ELECTED COUNCIL + LAWS/COURTS/TAXES

## 34. Four systems that must not be collapsed

Visual 39 - Constitutional differentiation grid

| System              | Source                             | Territorial unit                          | Core institution                                                                                         |
|---------------------|------------------------------------|-------------------------------------------|----------------------------------------------------------------------------------------------------------|
| ordinary Panchayats | Part IX                            | rural local area                          | Gram Sabha + three-tier PRIs                                                                             |
| PESA                | 1996 Act applying modified Part IX | Fifth Schedule Scheduled Areas            | habitation-based Gram Sabha + PRIs                                                                       |
| Sixth Schedule      | Constitution                       | autonomous district/region in four States | District/Regional Council                                                                                |
| Article 371 family  | Part XXI State-specific provisions | named State                               | Governor responsibility, committees, customary/resource protections or regional boards depending Article |

- [FACT] Article 243M excludes Scheduled Areas and tribal areas from automatic Part IX application.
- [FACT] PESA extends Part IX only to Fifth Schedule areas, with exceptions and modifications.
- [LIMIT] Article 371A/371G customary-law and land/resource protections do not make Nagaland or all Mizoram a Sixth Schedule council system.

## 35. Why PESA was enacted

Visual 40 - From protected subject to self-governing participant

FIFTH SCHEDULE  
 protective administration  
 |  
 Part IX initially excluded by Article 243M  
 |  
 Bhuria Committee approach  
 |  
 PESA, 1996  
 |  
 custom + habitation village + Gram Sabha powers  
 |  
 development decisions become participatory and locally accountable

- [FACT] PESA requires State Panchayat law in Scheduled Areas to conform to customary law, social and religious practices and traditional management of community resources.
- [ANALYSIS] It adds a self-rule logic to a Schedule otherwise centred on the Governor, State and Union.
- [LIMIT] PESA operates through State legislation and implementation; central enactment alone does not create identical institutional practice everywhere.

## 36. PESA village and Gram Sabha

Visual 41 - Habitation-based democratic unit

hamlet / habitation / group of habitations  
 |  
 community managing affairs by traditions and customs  
 |  
 v  
 PESA VILLAGE  
 |  
 all persons on village-level electoral rolls  
 |  
 v  
 GRAM SABHA

- [FACT] PESA's village conception is deliberately closer to lived community than a large administrative Gram Panchayat boundary.
- [FACT] Every Gram Sabha is competent to safeguard traditions, customs, cultural identity, community resources and customary dispute resolution.



- [LIMIT] Custom is constitutionally relevant but cannot be treated as immune from Fundamental Rights, statute or judicial review.

## 37. PESA power verbs

**Visual 42 - Exact statutory verb matrix**

| Verb                               | Object                                                                                             | Holder/level under section 4                                                               |
|------------------------------------|----------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|
| approve                            | social/economic development plans, programmes and projects before village-Panchayat implementation | Gram Sabha                                                                                 |
| identify/select                    | beneficiaries under poverty alleviation and other programmes                                       | Gram Sabha                                                                                 |
| certify                            | utilisation of funds for relevant plans/programmes/projects                                        | Gram Sabha certification obtained by village Panchayat                                     |
| consult                            | land acquisition and resettlement/rehabilitation in Scheduled Areas                                | Gram Sabha or Panchayat at appropriate level                                               |
| manage                             | planning and management of minor water bodies                                                      | Panchayat at appropriate level                                                             |
| recommend mandatorily              | prospecting licence/mining lease for minor minerals                                                | Gram Sabha or Panchayat at appropriate level                                               |
| recommend mandatorily              | concession for minor-mineral exploitation by auction                                               | Panchayat at appropriate level                                                             |
| own / regulate / control / restore | specified resources and institutions                                                               | State law must endow Gram Sabha and Panchayats at appropriate level as section 4(m) states |

**Visual 43 - Section 4(m) substantive basket**

ownership of minor forest produce  
control of village markets  
regulate money-lending to STs  
regulate/restrict intoxicants  
prevent land alienation + restore unlawfully alienated land  
control social-sector institutions and functionaries  
control local plans and resources, including tribal sub-plans

- [LIMIT] Attribute each power to the statutory formulation - "Gram Sabha or Panchayats at the appropriate level" where relevant - rather than assigning everything exclusively to one Gram Sabha.

## 38. Consultation, recommendation and approval are different

**Visual 44 - Legal intensity ladder**

INFORMATION

<

CONSULTATION

views must be sought and considered

<

PRIOR / MANDATORY RECOMMENDATION

specified recommendation is a precondition

<

APPROVAL

plan/programme/project needs Gram Sabha approval before local implementation

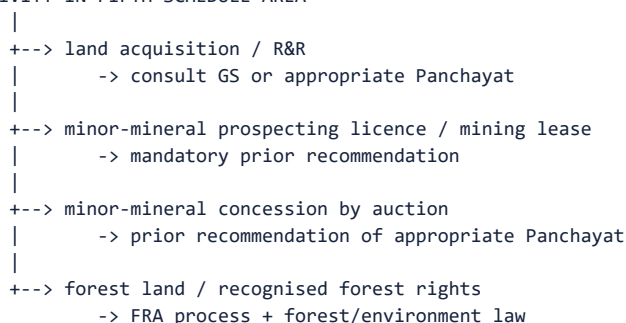
- [FACT] PESA uses consultation before land acquisition and resettlement/rehabilitation.
- [FACT] It makes recommendations mandatory before specified minor-mineral licences/leases and concessions.
- [FACT] It requires Gram Sabha approval of local development plans, programmes and projects before village-Panchayat implementation.

- [FACT] The central Act keeps actual planning and implementation of acquisition-linked development projects coordinated at the State level.
- [LIMIT] These provisions do not amount to a universal consent/veto rule for every acquisition, major mineral, forest clearance or infrastructure project.

## 39. PESA land and minor-mineral decision flow

### Visual 45 - Project-stage precision

PROPOSED ACTIVITY IN FIFTH SCHEDULE AREA



- [ANALYSIS] Correct sequencing prevents a common answer error: using one PESA verb to describe a legally different stage.

## 40. PESA representation and reservations

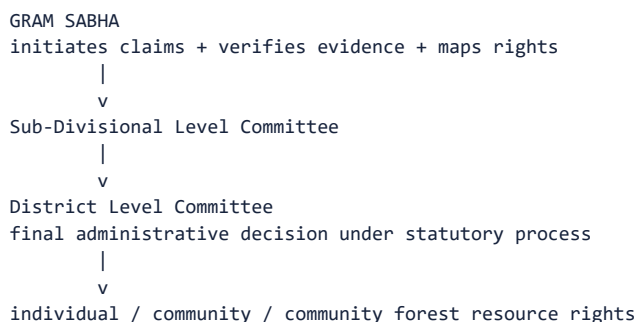
### Visual 46 - Scheduled-Area representation safeguards

| Feature             | PESA rule                                                                              |
|---------------------|----------------------------------------------------------------------------------------|
| ST seat reservation | not less than one-half of total seats at every Panchayat level in Scheduled Areas      |
| chairpersons        | all chairperson seats at all levels reserved for STs                                   |
| unrepresented STs   | State may nominate at intermediate/district level, within statutory ceiling            |
| higher-level design | State law must not let higher Panchayat assume powers of lower Panchayat or Gram Sabha |

- [ANALYSIS] PESA combines territorial self-government, substantive representation and subsidiarity.
- [FACT] PESA also asks State legislation to endeavour to follow the Sixth Schedule pattern while designing district-level administrative arrangements in Scheduled Areas.
- [LIMIT] Reservation supplies presence; actual influence still depends on meeting design, records, information and control over staff/resources.

## 41. FRA relationship

### Visual 47 - Rights-recognition ladder



- [FACT] FRA section 6 makes the Gram Sabha the authority that initiates determination of individual and community forest rights.

- [FACT] Community Forest Resource rights include the right to protect, regenerate, conserve or manage a traditionally protected community forest resource.
- [FACT] Section 5 assigns holders/Gram Sabha duties to protect wildlife, forests and biodiversity, preserve catchments and ensure decisions on access are taken through regulated community processes.
- [LIMIT] FRA recognition does not transfer all forest administration or mineral ownership to the Gram Sabha.

## 42. PESA and FRA: overlap without merger

**Visual 48 - Two statutes, two primary functions**

| PESA                                                  | FRA                                                                            |
|-------------------------------------------------------|--------------------------------------------------------------------------------|
| local self-government in Fifth Schedule areas         | recognition and vesting of forest rights                                       |
| customary institutions and community resources        | individual, community and CFR rights                                           |
| specified approval/consultation/recommendation powers | claims, title and conservation responsibilities                                |
| minor forest produce ownership route in State law     | ownership/access/use/disposal rights over MFP under statutory rights framework |

**Visual 49 - Combined governance chain**

PESA: WHO PARTICIPATES AND WITH WHAT LOCAL POWER?

+

FRA: WHO HOLDS WHICH FOREST RIGHT?

+

forest / environment / mining / land law

|

v

lawful project or conservation decision

- [ANALYSIS] PESA and FRA are complementary but not interchangeable. A project may satisfy one and still fail another legal requirement.

## 43. Land alienation: prevention and restoration

**Visual 50 - Alienation control cycle**

weak title / debt / fraud / coercion / administrative transfer

|

v

loss of tribal land and livelihood

|

|                                  |                                  |
|----------------------------------|----------------------------------|
| +-----+                          |                                  |
| Fifth Schedule regulation        | PESA State-law powers            |
| transfer/allotment/money-lending | prevent + restore alienated land |
| +-----+                          |                                  |

|

records + accessible forum + enforcement

|

v

restoration rather than paper prohibition

- [ANALYSIS] A prohibition without updated records, legal aid and restitution machinery can freeze illegality rather than reverse it.
- [LIMIT] The applicable land-transfer regulation is State-specific; never assume identical wording or remedies across all 10 States.

## 44. Samatha: holding and boundary

### Visual 51 - Case-use discipline

| Element                     | Safe proposition                                                                                                                                              |
|-----------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|
| case                        | <i>Samatha v. State of Andhra Pradesh</i> (1997)                                                                                                              |
| legal setting               | Andhra Pradesh Scheduled Areas Land Transfer Regulation read with Fifth Schedule                                                                              |
| majority holding            | State grants/leases of land in Scheduled Areas to non-tribal private mining companies were invalid under that regulatory setting                              |
| constitutional significance | State acts as trustee; anti-alienation purpose receives a protective reading                                                                                  |
| qualification               | later treatment, including the BALCO context, prevents presenting the Andhra Pradesh regulation-based holding as an automatic nationwide rule for every State |

- [LIMIT] Do not convert *Samatha* into the sentence "all mining by every private company in every Scheduled Area is constitutionally prohibited." Identify the State regulation, land status, lessee and later legal context.

## 45. Orissa Mining Corporation / Niyamgiri

### Visual 52 - Supreme Court's actual process

FRA individual/community/cultural/religious claims

|

v

Gram Sabhas consider and decide those claims  
with State/MoTA assistance and judicial observer

|

v

decisions communicated through State to MoEF

|

v

MoEF takes final Stage-II forest-clearance decision  
in light of Gram Sabha decisions

- [FACT] The Court held that Gram Sabhas had a role in safeguarding customary and religious rights under FRA read with PESA.
- [FACT] It directed consideration of whether mining would affect worship of Niyam Raja and other community, individual, cultural and religious claims.
- [FACT] The final Stage-II clearance decision remained with MoEF, to be taken in light of Gram Sabha decisions.
- [LIMIT] The judgment is not authority for an unqualified Gram Sabha veto over every mine or ordinary EIA hearing.

## 46. Development, mining and displacement conflict

### Visual 53 - Rights-impact chain

mineral / infrastructure proposal

|

land take + forest diversion + ecological change

|

livelihood + culture + sacred landscape + settlement impact

|

PESA + FRA + land-transfer law + acquisition/R&R + environment law

|

participatory evidence and reasoned decision

|

avoid | redesign | condition | compensate/rehabilitate | reject

### Visual 54 - Claim-evidence-analysis-qualification example

| Step           | Answer-writing content                                                                                     |
|----------------|------------------------------------------------------------------------------------------------------------|
| claim          | participation changes what counts as project impact                                                        |
| named evidence | <i>Orissa Mining Corporation</i> required Gram Sabha determination of FRA-linked cultural/religious claims |
| analysis       | sacred and community relationships cannot be reduced to market compensation                                |
| qualification  | MoEF retained the final clearance function; other statutory routes still applied                           |

## 47. Fundamental Rights and DPSP interface

### Visual 55 - Constitutional rights web

| Provision      | Scheduled/tribal-area application                                                            |
|----------------|----------------------------------------------------------------------------------------------|
| Article 14     | non-arbitrary classification and administration                                              |
| Article 19     | movement, residence, occupation subject to valid protections/restrictions                    |
| Article 21     | dignity, livelihood, fair procedure and cultural conditions of life                          |
| Articles 25-26 | religious practice and sacred-landscape claims, as applied in Niyamgiri                      |
| Article 29(1)  | conserve distinct language, script or culture                                                |
| Article 46     | promote educational/economic interests of STs and protect from social injustice/exploitation |
| Article 300A   | deprivation of property only by authority of law                                             |

- [ANALYSIS] The Schedules operationalise substantive equality but do not displace Part III.
- [LIMIT] No single Article automatically decides a project; the correct answer integrates rights, enabling statutes, public purpose and proportionality.

## 48. Accountability architecture

### Visual 56 - Five-accountability model

|                |                                                                |
|----------------|----------------------------------------------------------------|
| ELECTORAL      | council / Panchayat representatives                            |
| LEGAL          | Constitution, PESA, FRA, land and environment law              |
| FISCAL         | grants, council funds, audit and utilisation records           |
| ADMINISTRATIVE | Governor/State/Union reporting and directions                  |
| SOCIAL         | Gram Sabha, public records, grievance and community monitoring |

### Visual 57 - Common accountability failures

| Failure                                     | Institutional effect                    |
|---------------------------------------------|-----------------------------------------|
| TAC agenda controlled from above            | advice becomes ceremonial               |
| Governor reports not transparent            | Union supervision lacks public evidence |
| council law awaits assent without timelines | autonomy becomes administrative delay   |
| parallel departments retain staff/funds     | responsibility without control          |
| Gram Sabha record is poor or manipulated    | participation becomes formal compliance |
| land/FRA records are incomplete             | rights cannot survive project appraisal |

## 49. Current implementation control: PESA rules

Visual 58 - Official rule-status snapshot, 19 Aug 2026

| Official MoPR listing includes  | Current qualification                                                         |
|---------------------------------|-------------------------------------------------------------------------------|
| Andhra Pradesh 2011             | implementation quality must be separately assessed                            |
| Telangana adoption in 2014      | State adaptation and practice matter                                          |
| Himachal Pradesh 2011           | rules do not prove devolution                                                 |
| Rajasthan Act 1999 / Rules 2011 | verify current amendments for granular claims                                 |
| Maharashtra 2014                | sectoral-law conformity remains relevant                                      |
| Gujarat 2017 and amendment      | compliance is multi-law                                                       |
| Chhattisgarh 2022               | recent rule does not erase capacity gaps                                      |
| Madhya Pradesh 2022             | same qualification                                                            |
| Jharkhand Rules 2025            | official listing uploaded/updated in 2026                                     |
| Odisha                          | no separate notified Rules instrument appears in the official central listing |

- [CURRENT] The safe summary is **nine listed rule regimes for ten PESA States**, with Odisha the listed gap.
- [LIMIT] Do not equate "rules notified" with "PESA fully implemented"; conformity of excise, markets, money-lending, land, minor minerals, forest produce and Panchayat laws must also be tested.

## 50. Capacity, convergence and institutional reform

Visual 59 - From legal power to usable power

| Gap                      | Reform design                                                                         | Evidence discipline                       |
|--------------------------|---------------------------------------------------------------------------------------|-------------------------------------------|
| inaccessible law         | local-language power cards and habitation maps                                        | name PESA sections                        |
| weak meetings            | notice, quorum, women/PVTG access and independent facilitation                        | do not count attendance as voice          |
| poor records             | geo-referenced land/CFR maps and public minutes                                       | protect privacy and customary knowledge   |
| fragmented departments   | convergence protocol across Tribal, Panchayat, Forest, Revenue and Mining departments | convergence cannot override rights        |
| TAC dormancy             | mandatory calendar, public agenda and reasoned response                               | preserve advisory status                  |
| council assent delay     | transparent timelines and reasons                                                     | retain constitutional checks              |
| displaced responsibility | activity/staff/fund mapping                                                           | autonomy requires implementable functions |
| weak remedy              | accessible appeal, legal aid and restoration tracking                                 | remedy must follow violation              |

Visual 60 - ITDA / programme control

constitutional institution? NO  
 administrative implementation vehicle? OFTEN, STATE-SPECIFIC  
 can it replace TAC / Gram Sabha / ADC? NO  
 can convergence programme waive PESA/FRA? NO

- [ANALYSIS] Integrated Tribal Development Agencies/Projects and current convergence programmes may coordinate delivery, but their mandate and territorial form are administrative and State-specific.

- [LIMIT] Do not quote an ITDA count, dashboard total or programme reach without a dated official source.

## 51. Ladakh and extension debates

### Visual 61 - Extension test

| Question                                            | Analytical test                                                                               |
|-----------------------------------------------------|-----------------------------------------------------------------------------------------------|
| Is tribal population high?                          | relevant but not sufficient                                                                   |
| Are land, culture and employment safeguards needed? | identify concrete risk                                                                        |
| Which model fits?                                   | Sixth Schedule, Article 371-type protection, stronger hill councils or legislation may differ |
| What democratic unit?                               | village, hill council, ADC or legislature                                                     |
| What State/UT relation?                             | Sixth Schedule text currently names four States                                               |
| What legal change?                                  | requires enacted constitutional/legal action, not demand alone                                |

- [CURRENT] Ladakh's constitutional-safeguard demand remains under official dialogue; Sixth Schedule status has not been granted.
- [ANALYSIS] The strongest answer compares institutional fit rather than assuming that the Sixth Schedule is the only possible safeguard.

## 52. Reform principles

### Visual 62 - Eight-point reform compass

- 1 territorial accuracy
- 2 subsidiarity
- 3 legally precise participation
- 4 secure land and forest records
- 5 accountable Governor/State/Union action
- 6 council fiscal and staff capacity
- 7 rights-respecting development sequencing
- 8 transparent review with remedies

- [ANALYSIS] Reform should convert protection into agency without romanticising custom or weakening constitutional rights.

## 53. Prelims trap board

### Visual 63 - High-frequency reversals

| Wrong                                                        | Correct                                                        |
|--------------------------------------------------------------|----------------------------------------------------------------|
| Fifth Schedule applies to Assam, Meghalaya, Tripura, Mizoram | Sixth Schedule applies there                                   |
| Governor declares Scheduled Areas                            | President declares by order                                    |
| Governor declares Scheduled Tribes                           | President specifies under Article 342; Parliament alters       |
| TAC legislates                                               | TAC advises                                                    |
| State loses executive power in Scheduled Area                | State power continues under report/direction supervision       |
| Governor's regulation needs Governor assent                  | it needs President's assent                                    |
| ADC has 30 elected members everywhere                        | ordinary maximum 30 with nominations; special exceptions exist |
| ADC controls reserved forests                                | paragraph 3 excludes reserved forests                          |
| PESA applies to Sixth Schedule areas                         | PESA applies to Fifth Schedule Scheduled Areas                 |
| PESA means consent for every project                         | verbs vary by subject and stage                                |

| Wrong                                               | Correct                                                                |
|-----------------------------------------------------|------------------------------------------------------------------------|
| Niyamgiri made Gram Sabha final clearance authority | MoEF retained final Stage-II decision in light of Gram Sabha decisions |
| Article 371 equals Sixth Schedule                   | separate constitutional techniques                                     |

## 54. Mains answer-writing method

### Visual 64 - Evidence-led paragraph

#### CLAIM

- > NAMED CONSTITUTIONAL / STATUTORY / JUDICIAL EVIDENCE
- > WHAT THE MECHANISM DOES
- > WHY IT MATTERS
- > IMPLEMENTATION OR DOCTRINAL QUALIFICATION
- > MINI-VERDICT

#### Example

- **Claim:** PESA is stronger than generic consultation.
- **Evidence:** section 4(e) requires Gram Sabha approval of local plans; section 4(i) uses consultation for acquisition/R&R; sections 4(k)-(l) make recommendations mandatory for specified minor-mineral decisions.
- **Analysis:** Parliament calibrated community power to the decision type.
- **Qualification:** it did not enact one universal veto.
- **Mini-verdict:** legal precision strengthens, rather than weakens, the case for meaningful participation.

## 55. Thesis selector

### Visual 65 - Demand-to-thesis matrix

| Demand          | Defensible thesis                                                                                            |
|-----------------|--------------------------------------------------------------------------------------------------------------|
| rationale       | differentiated administration is justified by substantive equality, but must convert protection into agency  |
| Fifth Schedule  | strong supervisory powers are weakened by opaque reporting, TAC agenda control and implementation dormancy   |
| Sixth Schedule  | councils create real legislative-executive-fiscal autonomy, yet remain subject-specific and State-supervised |
| comparison      | Fifth is guardian-centred protection; Sixth is council-centred self-government                               |
| PESA            | section 4 is a calibrated power code, not a universal veto                                                   |
| FRA link        | tenure recognition and community forest governance make participation materially meaningful                  |
| mining conflict | lawful development requires cumulative compliance, not substitution of one clearance for another             |
| reform          | transparency, records, capacity and remedy must connect constitutional text to community power               |



## Polity 26 - Scheduled and Tribal Areas - PYQ, practice and solved workbook

### Verified routed Prelims PYQs

#### PYQ 1 - UPSC Prelims 2019, Q50

Verified from the locally held official paper:

Under which Schedule of the Constitution of India can the transfer of tribal land to private parties for mining be declared null and void? A. Third Schedule B. Fifth Schedule C. Ninth Schedule D. Twelfth Schedule

**Key status:** The audited local ledger records that an official key is unavailable locally. No answer letter is presented as official.

**Tested concept:** [FACT] Fifth Schedule paragraph 5 permits gubernatorial regulations restricting tribal land transfers in Scheduled Areas, subject to TAC consultation where one exists and presidential assent. [FACT] *Samatha* applied the Andhra Pradesh Scheduled Areas Land Transfer Regulation to invalidate the impugned mining leases in its specific legal setting.

**Qualification:** [LIMIT] The legal result depends on the applicable Fifth Schedule regulation/State law and facts; the case is not a free-standing nationwide ban detached from those instruments.

#### PYQ 2 - UPSC Prelims 2022, Q73

**Verified routed demand:** consequences of bringing an area under the Fifth Schedule.

**Wording control:** The routing ledger preserves the neutral demand but the exact official-paper wording and official key are not available in the verified local corpus used for this export. They are not reconstructed.

#### Concept model

| Consequence             | Governing rule                                                  |
|-------------------------|-----------------------------------------------------------------|
| legal status            | President declares a Scheduled Area                             |
| ordinary administration | State executive power continues                                 |
| supervision             | Governor reports; Union may give directions                     |
| advisory institution    | TAC in the State                                                |
| protective adaptation   | Governor may adapt laws and make land/money-lending regulations |
| self-government layer   | PESA applies through State law                                  |

**Key status:** No option is inferred. The concept lesson is that scheduling produces protective administration; it does not create a UT, a Sixth Schedule ADC or automatic Union administration.

#### PYQ 3 - UPSC Prelims 2023, Q39

Verified from the locally held official paper:

With reference to "Scheduled Areas" in India, consider the following statements: 1. Within a State, the notification of an area as Scheduled Area takes place through an Order of the President. 2. The largest administrative unit forming the Scheduled Area is the District and the lowest is the cluster of villages in the Block. 3. The Chief Ministers of the concerned States are required to submit annual reports to the Union Home Ministry on the administration of Scheduled Areas in the States. How many of the above statements are correct? A. Only one B. Only two C. All three D. None

**Key status:** The official key is unavailable in the audited local corpus; no option is inferred.

#### Statement audit without key inference

- [FACT] Statement 1 tracks Fifth Schedule paragraph 6: Scheduled Area status is created through a Presidential Order.
- [FACT] The Ministry's official administrative criteria speak of a viable unit such as a district, block or taluk and compact territory. [LIMIT] Because the official key is unavailable, this package does not convert that guidance into a declared answer on statement 2.
- [FACT] Paragraph 3 assigns the annual/required report to the **Governor** and the recipient is the **President**, not the Chief Minister and Union Home Ministry as stated.

#### PYQ 4 - UPSC Prelims 2024, Q84

Verified from the locally held official paper:

Consider the following statements: 1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe. 2. A community declared as a Scheduled Tribe in a State need not be so in another State. Which of the statements given above is/are correct? A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

**Official Set-A key: B.**

**Explanation:** [FACT] Article 342 authorises the President to specify STs for a State/UT by public notification, after the constitutionally required consultation, and Parliament may later include/exclude by law. [FACT] ST status is State/UT-specific, so the same community need not have the same status everywhere.

#### PYQ 5 - UPSC Prelims 2025, Q56

Verified from the locally held official paper:

With reference to the Constitution of India, if an area in a State is declared as Scheduled Area under the Fifth Schedule: I. the State Government loses its executive power in such areas and a local body assumes total administration; II. the Union Government can take over the total administration of such areas under certain circumstances on the recommendations of the Governor. Which of the statements given above is/are correct? A. I only B. II only C. Both I and II D. Neither I nor II

**Official Set-A key: D.**

**Explanation:** [FACT] State executive power continues. [FACT] The Governor reports to the President and Union executive power extends to directions on administration. [LIMIT] Neither proposition in the stem accurately describes a local-body or Union "total administration" takeover.

#### PYQ 6 - UPSC Prelims 2026, Q57

Verified from the locally held official paper:

Consider the following statements about the provisions pertaining to the Scheduled Castes and the Scheduled Tribes in India: 1. Provisions regarding the administration of the Tribal Areas in Assam, Meghalaya, Tripura and Mizoram are given in the Fifth Schedule. 2. Some tribes of India are entitled to exemption from paying Income Tax on certain incomes. 3. The Constitution provides for reservation of seats in Panchayats for women belonging to the Scheduled Castes and Scheduled Tribes. Which conclusion based on the statements is correct? A. There are two correct statements, including statement 2. B. There are two correct statements, statements 1 and 3. C. There is only one correct statement. D. All three statements are correct.

**Key status:** A provisional Set-A key is held locally, but the routing ledger deliberately records no answer letter and no answer is inferred here.

**Concept audit**

- [FACT] Statement 1 reverses the Schedules: the four named States are the Sixth Schedule field.
- [FACT] Income-tax Act section 10(26) contains a conditional statutory exemption for specified income of eligible ST members residing in specified areas; it is not a blanket tribal exemption.
- [FACT] Article 243D includes SC/ST reservation in Panchayats and requires not less than one-third of reserved SC/ST seats to be reserved for women belonging to those categories.

- [LIMIT] Because the locally held key is provisional and no letter is recorded in the ledger, this package does not declare an answer option.

### PYQ coverage control

- [FACT] The audited 2018-2026 routing ledgers identify six direct objective demands for this owner.
- [LIMIT] Exact wording is reproduced only where verified against a locally held official paper. Official answer letters are stated only for the locally held final 2024 and 2025 Set-A keys.

## Original MCQ loop - strict continuous A -> B -> C -> D rotation

### OM1. Article 244 mapping

Which pairing is correct?

A. Article 244(1)-Fifth Schedule; Article 244(2)-Sixth Schedule. B. Article 244(1)-Sixth Schedule; Article 244(2)-Fifth Schedule. C. Article 244A-Fifth Schedule declaration by President. D. Article 339-Sixth Schedule council composition.

**Answer: A.**

**Explanation:** [FACT] Article 244 is the gateway that applies the two Schedules to their different territorial fields.

### OM2. Fifth Schedule States

Which statement is correct as on 19 August 2026?

A. Every State with an ST population has a notified Scheduled Area. B. Official Central material identifies notified Fifth Schedule areas in 10 States. C. All territory in those 10 States is scheduled. D. Assam is one of the 10 Fifth Schedule States.

**Answer: B.**

**Explanation:** [CURRENT] Ten States have notified areas; notification is territorial, not State-wide.

### OM3. Declaration authority

A legally effective Scheduled Area status is created by:

A. a TAC resolution. B. a State Cabinet decision. C. a Presidential Order under the Fifth Schedule. D. a Gram Sabha resolution under PESA.

**Answer: C.**

**Explanation:** [FACT] Administrative criteria guide identification, but the Presidential Order creates status.

### OM4. Executive power

Which is the most accurate consequence of Fifth Schedule notification?

A. The area becomes a Union Territory. B. An ADC assumes total administration. C. The State loses all executive power. D. State executive power continues, subject to Governor reporting and Union directions.

**Answer: D.**

**Explanation:** [FACT] Paragraph 3 creates supervision, not automatic substitution of government.

### OM5. TAC composition

Which statement reflects the Fifth Schedule?

A. TAC has not more than 20 members, with the specified ST-legislator representation rule. B. TAC has 30 elected members and four nominees. C. TAC is chaired constitutionally by the President. D. TAC exists only in Sixth Schedule States.

**Answer: A.**

**Explanation:** [FACT] The 30-member pattern belongs to the ordinary Sixth Schedule council ceiling.

### OM6. TAC function

The primary constitutional duty of the TAC is to:

A. levy land revenue. B. advise on ST welfare and advancement matters referred by the Governor. C. assent to State legislation. D. decide forest-right claims.

**Answer: B.**

**Explanation:** [FACT] TAC advice is not legislation, adjudication or executive approval.

### OM7. Fifth Schedule regulations

A Governor-made regulation under paragraph 5 takes effect after:

A. TAC approval alone. B. State Assembly ratification. C. presidential assent. D. Supreme Court certification.

**Answer: C.**

**Explanation:** [FACT] TAC consultation where it exists precedes the regulation; presidential assent gives effect.

### OM8. Law-application direction

Which power can expressly operate retrospectively?

A. Article 342 ST notification only. B. TAC advice. C. Gram Sabha beneficiary selection. D. Governor's direction adapting/non-applying a law in a Scheduled Area.

**Answer: D.**

**Explanation:** [FACT] Fifth Schedule paragraph 5(1) permits retrospective effect.

### OM9. Article 339

Article 339(2) principally concerns:

A. Union directions on State schemes essential for ST welfare. B. creation of an autonomous State within Assam. C. Governor assent to ADC laws. D. recognition of ST communities.

**Answer: A.**

**Explanation:** [FACT] It is a welfare-scheme direction power, distinct from Article 244A.

### OM10. Article 275(1)

Which provision supports grants for ST welfare and raising Scheduled-Area administration?

A. Article 243D. B. Article 275(1). C. Article 300A. D. Article 371A.

**Answer: B.**

**Explanation:** [FACT] Article 275(1) is the constitutional fiscal route.

### OM11. Fifth Schedule evaluation

Which conclusion is best?

A. Constitutional powers guarantee outcomes without institutions. B. TAC is stronger than a legislature. C. effectiveness depends on timely power use, participation, records and capacity. D. Union directions remove the need for State administration.

**Answer: C.**

**Explanation:** [ANALYSIS] The framework's performance is multiplicative, not self-executing.

### OM12. Territorial trap

Which statement is false?

A. Presidential Orders define Scheduled Area coverage. B. Some districts may be only partly covered. C. ST population alone does not create status. D. Once a State is listed, its entire territory is a Scheduled Area.

**Answer: D.**

**Explanation:** [FACT] Legal status attaches only to notified territory.

### OM13. Sixth Schedule States

Which is the complete Sixth Schedule set?

A. Assam, Meghalaya, Tripura and Mizoram. B. Assam, Nagaland, Manipur and Mizoram. C. All eight North-Eastern States. D. Meghalaya, Tripura, Mizoram and Arunachal Pradesh.

**Answer: A.**

**Explanation:** [FACT] "A-M-T-M" is the exact constitutional set.

### OM14. Autonomous regions

An autonomous region may be created where:

A. a Scheduled Area becomes a UT. B. different Scheduled Tribes inhabit parts of an autonomous district. C. a TAC demands taxation power. D. Parliament declares a new State.

**Answer: B.**

**Explanation:** [FACT] The Governor may divide such areas into autonomous regions.

### OM15. Ordinary council composition

Which statement is correct?

A. Every District Council has exactly 30 elected members. B. All members are nominated by the Governor. C. The ordinary ceiling is 30, with not more than four Governor-nominated members. D. Elected members have no fixed term.

**Answer: C.**

**Explanation:** [FACT] Special amendments, including BTC's design, create exceptions.

### OM16. Council law

A District/Regional Council law under paragraph 3 ordinarily takes effect after:

A. President's assent. B. TAC consultation. C. State Cabinet approval alone. D. Governor's assent.

**Answer: D.**

**Explanation:** [FACT] This is the crucial Fifth-versus-Sixth assent reversal.

### OM17. Council legislative field

Which is a paragraph 3 subject?

A. regulation of shifting cultivation. B. defence. C. currency. D. citizenship.

**Answer: A.**

**Explanation:** [FACT] Land, non-reserved forests, local institutions and customary matters are core fields.

### OM18. Forest competence

Which forest category is excluded from the ordinary paragraph 3 forest field?

A. community forest resource. B. reserved forest. C. protected forest. D. village forest.

**Answer: B.**

**Explanation:** [FACT] The omission of "reserved" is a standard close-option discriminator.

### OM19. Council courts

The safest description of Sixth Schedule judicial power is:

A. ADCs replace all High Courts. B. ADCs try every criminal offence. C. village/council courts handle specified matters within the tribal-party jurisdictional boundary. D. judicial power exists only under PESA.

**Answer: C.**

**Explanation:** [FACT] Jurisdiction is bounded by parties, territory, subject and rules.

### OM20. Fiscal autonomy

Which is within the Sixth Schedule revenue basket?

A. customs duty. B. corporation tax. C. GST on inter-State supply. D. specified taxes on professions, animals/vehicles, markets and local services.

**Answer: D.**

**Explanation:** [FACT] Council fiscal power is constitutionally specified, not plenary.

### OM21. Mineral royalties

Paragraph 9 contemplates:

A. an agreed share of mineral royalties for the District Council. B. exclusive council ownership of all minerals. C. automatic cancellation of every State lease. D. no State role in minerals.

**Answer: A.**

**Explanation:** [FACT] Revenue sharing is not mineral sovereignty.

### OM22. Bodoland exception

Which statement is accurate?

A. BTC follows an invariable 26 elected plus four nominated design. B. BTC has a special 46-member design: 40 elected and six nominated. C. BTC is an autonomous State under Article 244A. D. BTC is a Fifth Schedule TAC.

**Answer: B.**

**Explanation:** [FACT] The exception warns against universalising the ordinary paragraph 2 model.

### OM23. Assam asymmetry

Paragraphs 3A and 3B illustrate:

A. automatic Statehood. B. abolition of Governor assent. C. additional subject allocations for specified Assam councils. D. extension of PESA to BTC.

**Answer: C.**

**Explanation:** [FACT] Sixth Schedule autonomy is internally asymmetric.

### OM24. Article 244A

Article 244A enables Parliament to:

A. declare all Assam a Scheduled Area. B. create a PESA State. C. notify an ST list. D. create an autonomous State within Assam with a legislature/CoM.

**Answer: D.**

**Explanation:** [FACT] It is deeper than an ADC but remains an enabling constitutional route.

### OM25. PESA reach

PESA applies to:

A. Fifth Schedule Scheduled Areas. B. all Sixth Schedule tribal areas. C. every rural area in India. D. only forest land.

**Answer: A.**

**Explanation:** [FACT] Article 243M exclusion is modified by PESA for Fifth Schedule areas.

### OM26. Acquisition and R&R

PESA section 4 requires, before land acquisition and resettlement/rehabilitation:

A. universal Gram Sabha consent. B. consultation with the Gram Sabha or Panchayat at the appropriate level. C. TAC legislation. D. President's assent.

**Answer: B.**

**Explanation:** [FACT] Consultation must not be inflated into the different verb "consent".

### OM27. Minor minerals

Which PESA formulation is correct?

A. every major-mineral project needs TAC approval. B. every mine needs President's assent. C. specified minor-mineral licences/leases require mandatory prior recommendation. D. Gram Sabha owns all subsoil minerals.

**Answer: C.**

**Explanation:** [FACT] Section 4(k)-(l) uses recommendation for specified minor-mineral decisions.

### OM28. Section 4(m)

Which basket best reflects PESA?

A. defence, foreign affairs and currency. B. High Court appointments and police command. C. Statehood, citizenship and emergency. D. minor forest produce, markets, money-lending, intoxicants and land-restoration powers.

**Answer: D.**

**Explanation:** [FACT] State law must specifically endow the Gram Sabha/Panchayats at the appropriate level.

### OM29. FRA claims

The statutory claims process begins with:

A. the Gram Sabha. B. the Governor. C. the District Council. D. the President.

**Answer: A.**

**Explanation:** [FACT] FRA section 6 makes the Gram Sabha the initiating authority.

### OM30. CFR right

Community Forest Resource rights include the right to:

A. own every mineral. B. protect, regenerate, conserve or manage the community forest resource. C. abolish reserved forests. D. bypass the FRA committee process.

**Answer: B.**

**Explanation:** [FACT] CFR is a management/conservation right distinct from an individual cultivation right.

### OM31. Niyamgiri holding

Which statement is most accurate?

A. The Court granted every Gram Sabha a nationwide mining veto. B. The Court transferred mineral ownership to the Dongria Kondh. C. Gram Sabhas determined FRA-linked claims; MoEF retained final Stage-II decision in light of them. D. The case concerned only ordinary EIA public hearings.

**Answer: C.**

**Explanation:** [FACT] This preserves both community-right determination and statutory clearance authority.

### OM32. Samatha limit

The safest use of *Samatha* is:

A. all private mining in India is void. B. Fifth Schedule itself nationalised minerals. C. the ruling has no tribal-land relevance. D. cite its Andhra Pradesh regulation-based holding and expressly qualify nationwide extension.

**Answer: D.**

**Explanation:** [LIMIT] Legal setting and later scope treatment are indispensable.

### OM33. Article 371 distinction

Which statement is correct?

A. Article 371 provisions are distinct State-specific arrangements, not synonyms for the Sixth Schedule. B. Article 371 automatically creates ADCs. C. Article 371 applies PESA to Mizoram. D. Article 371 eliminates Part III.

**Answer: A.**

**Explanation:** [FACT] Examples include Article 371A and 371G, each with its own text.

### OM34. Ordinary Panchayats

Article 243M means that:

A. Part IX automatically applies unchanged to every Scheduled/tribal area. B. Scheduled Areas and tribal areas are excluded from automatic Part IX application, with PESA extending it to Fifth Schedule areas. C. Panchayats can never exist in the North-East. D. ADCs are ordinary Zila Parishads.

**Answer: B.**

**Explanation:** [FACT] PESA is the Fifth Schedule modification route.

### OM35. Current PESA rule status

Which dated statement is supported by the official MoPR listing on 19 August 2026?

A. Odisha is the only State with rules. B. All ten States have identical rules. C. Nine State rule regimes are listed, including Jharkhand 2025; Odisha is not separately listed. D. PESA has been repealed.

**Answer: C.**

**Explanation:** [CURRENT] Notification status is not implementation completeness.



### OM36. Reform principle

Which reform best respects the constitutional design?

A. replace Gram Sabhas with dashboards. B. treat TAC advice as a statute. C. let convergence programmes waive PESA/FRA. D. combine transparent reporting, land/CFR records, council capacity, precise participation and accessible remedies.

**Answer: D.**

**Explanation:** [ANALYSIS] Reform must connect legal authority to usable, reviewable community power.

## Remedial MCQs - strict continuation A -> B -> C -> D rotation

### RM1. President-Governor reversal

Which matching is correct?

A. President-declares Scheduled Area; Governor-organises Sixth Schedule districts/regions. B. Governor-declares Scheduled Area; President-organises ADCs. C. TAC-declares ST list; Parliament-declares Scheduled Area. D. Gram Sabha-declares tribal area; Governor-declares ST list.

**Answer: A.**

**Explanation:** [FACT] Keep area declaration, ST specification and Sixth Schedule organisation on separate tracks.

### RM2. Assent reversal

Which pairing is accurate?

A. Fifth Schedule regulation-Governor assent; Sixth Schedule law-President assent. B. Fifth Schedule regulation-President assent; Sixth Schedule council law-Governor assent. C. both-President assent. D. neither requires assent.

**Answer: B.**

**Explanation:** [FACT] This reversal frequently decides a statement question.

### RM3. TAC versus ADC

Which institutional comparison is correct?

A. Both are advisory. B. Both levy taxes. C. TAC advises; ADC can legislate, administer, adjudicate specified disputes and levy specified taxes. D. TAC is more autonomous than an ADC.

**Answer: C.**

**Explanation:** [FACT] Fifth and Sixth Schedule bodies are not interchangeable.

### RM4. State executive power

Scheduling an area under the Fifth Schedule:

A. ends the State's executive power. B. creates a local sovereign government. C. triggers President's Rule. D. retains State administration within the Schedule's reporting and direction structure.

**Answer: D.**

**Explanation:** [FACT] This directly remedies the 2025 PYQ trap.

### RM5. PESA scope

Which statement is correct?

A. PESA modifies Part IX for Fifth Schedule Scheduled Areas. B. PESA creates Sixth Schedule councils. C. PESA applies only to one State. D. PESA replaces FRA.

**Answer: A.**

**Explanation:** [FACT] The statutes complement each other but have different objects.

### RM6. PESA verb

Before acquisition and R&R in a Scheduled Area, the central PESA text uses:

A. approval. B. consultation. C. ownership. D. adjudication.

**Answer: B.**

**Explanation:** [FACT] Minor-mineral decisions use a different "recommendation" rule.

### RM7. Forest rights

Which institution initiates FRA claims?

A. TAC. B. MoEFCC. C. Gram Sabha. D. ADC in every State.

**Answer: C.**

**Explanation:** [FACT] The process then moves through Sub-Divisional and District Level Committees.

### RM8. Niyamgiri limit

Which statement must be rejected?

A. FRA-linked religious claims were considered. B. Gram Sabha decisions informed the clearance process. C. MoEF retained the final Stage-II decision. D. The judgment created an unlimited Gram Sabha veto over every Indian project.

**Answer: D.**

**Explanation:** [LIMIT] The holding was project-, statute- and claim-specific.

### RM9. Council forest power

Which is correct?

A. Paragraph 3 includes management of forests other than reserved forests. B. ADCs control every national park automatically. C. FRA is inapplicable in the North-East. D. Council law requires President's assent.

**Answer: A.**

**Explanation:** [FACT] Reserved-forest exclusion and Governor assent are the key qualifiers.

### RM10. Article 244A

Article 244A is specifically associated with:

A. PESA rules in Odisha. B. an autonomous-State route within Assam. C. declaration of Scheduled Tribes. D. Fifth Schedule regulations nationwide.

**Answer: B.**

**Explanation:** [FACT] It should not be confused with an existing ADC.

### RM11. Current law control

Which is the safest dated statement?

A. Every PESA State has fully implemented every section. B. Odisha has a separately listed official rule instrument. C. The MoPR listing shows nine rule regimes and the implementation gap remains a separate question. D. Jharkhand has no PESA rules.

**Answer: C.**

**Explanation:** [CURRENT] Jharkhand Rules 2025 appear in the official list; Odisha does not.

### RM12. Answer-writing sequence

The strongest mining-rights paragraph is:

A. slogan -> unsourced statistic -> conclusion. B. case name -> universal claim. C. Article list without facts. D. claim -> Fifth/PESA/FRA/State-law evidence -> project mechanism -> analysis -> case-specific qualification.

**Answer: D.**

**Explanation:** [ANALYSIS] This sequence preserves legal accuracy and examiner-visible reasoning.

## Original solved Mains practice

### M1. Explain the constitutional rationale for separate administration of Scheduled and tribal areas. (10 marks, 150 words)

#### Model solution

**Thesis:** [ANALYSIS] The Fifth and Sixth Schedules use differentiated governance to achieve substantive equality where historical alienation, customary institutions, geographic isolation and land-resource dependence make ordinary administration inadequate.

**Historical basis:** [FACT] Colonial excluded-area administration concentrated executive control. Constituent Assembly subcommittees led by A.V. Thakkar and Gopinath Bordoloi redesigned differentiation around protection and self-government. [ANALYSIS] The Constitution therefore retained special territory while changing its democratic purpose.

**Two models:** [FACT] Article 244(1) applies the Fifth Schedule: Presidential declaration, Governor reporting/regulations, Union directions and TAC advice. Article 244(2) applies the Sixth: elected councils with specified legislative, executive, judicial and fiscal powers. [ANALYSIS] The first is guardian-centred protection; the second is territorial autonomy.

**Rights layer:** [FACT] PESA 1996 and FRA 2006 add Gram Sabha participation and forest-right recognition. [ANALYSIS] They convert communities from administrative objects into rights-bearing participants.

**Qualification:** [LIMIT] Special administration can become paternalistic or opaque; custom also remains subject to Fundamental Rights.

**Verdict:** Differentiation is legitimate when it secures land, culture, voice and accountable self-rule, not when it creates permanent executive tutelage.

**Why this earns marks:** It answers "why", names the constitutional models, supplies history and statutes, and ends with a qualified normative test.

## M2. "The Fifth Schedule is constitutionally powerful but institutionally under-activated."

Examine. (10 marks, 150 words)

### Model solution

**Thesis:** [FACT] The Fifth Schedule supplies strong supervisory and protective tools; [ANALYSIS] their impact depends on transparent use by the Governor, State and Union and meaningful community participation.

**Power:** The President declares/changes Scheduled Areas. The Governor reports annually, may adapt parliamentary/State laws and make peace-and-good-government regulations on land transfer, allotment and money-lending, subject to TAC consultation and presidential assent. Union directions and Articles 275(1)/339 add fiscal and welfare supervision.

**Under-activation:** [ANALYSIS] TAC agenda depends on gubernatorial reference; reports lack a constitutionally mandated public template; protective regulations and PESA conformity may lag; State revenue/mining priorities can conflict with anti-alienation goals.

**Named evidence:** [FACT] PESA section 4 creates precise Gram Sabha/Panchayat powers, while the official 2026 rule listing still shows Odisha without a separately listed rules instrument. [ANALYSIS] Enactment has not ensured uniform implementation.

**Qualification:** [LIMIT] The Governor's powers should not be misstated as unreviewable personal discretion.

**Verdict:** Activation requires public reporting, reasoned TAC follow-up, cross-law conformity, records and enforceable remedies.

**Why this earns marks:** It balances text and performance, uses exact institutions and a dated official implementation control.

## M3. Discuss the legislative, executive, judicial and fiscal powers of Sixth Schedule councils and their constitutional limits. (15 marks, 250 words)

### Model solution

**Thesis:** [FACT] Sixth Schedule councils are constitutionally protected territorial governments with multi-functional autonomy; [ANALYSIS] they remain subject-specific bodies within State and Union constitutional authority, not sovereign legislatures.

**Legislative:** Paragraph 3 covers land use, non-reserved forests, agricultural water, shifting cultivation, village administration, chiefs/headmen, inheritance, marriage/divorce and social customs. Laws require Governor assent. Assam paragraphs 3A/3B enlarge powers for specified councils.

**Executive:** Paragraph 6 permits management of primary schools, dispensaries, markets, ferries, fisheries, roads and entrusted welfare/planning functions. [ANALYSIS] Functional autonomy is strongest where staff and funds follow the subject.

**Judicial:** Paragraph 4 allows village/council courts and appeals for specified disputes involving tribal parties. [LIMIT] High Courts and the ordinary justice system retain their constitutional place.

**Fiscal:** Councils assess land revenue, levy specified taxes and maintain District/Regional Funds; paragraph 9 provides a mineral-royalty share. Article 275(1) supports capacity. [LIMIT] Revenue sharing is neither mineral ownership nor fiscal sovereignty.

**Checks:** Governor assent/approval, inquiry, suspension and specified dissolution/supersession powers; State-specific paragraphs govern application of laws; Parliament may amend the Schedule.

**Named examples:** [CURRENT] Assam's BTC has a special 46-member design; Meghalaya's three ADCs route instruments through State scrutiny to the Governor.

**Verdict:** The Schedule creates meaningful autonomy when constitutional powers, administrative transfer and democratic accountability operate together.

**Why this earns marks:** It organises the answer by four power types, names paragraphs/examples and repeatedly identifies the limits.

#### M4. Compare the Fifth and Sixth Schedules as competing models of tribal governance. (15 marks, 250 words)

##### Model solution

**Thesis:** [ANALYSIS] The Schedules answer the same problem through different institutional theories: the Fifth relies on protective supervision; the Sixth constitutionalises elected territorial self-government.

| Dimension           | Fifth                                                     | Sixth                                                     |
|---------------------|-----------------------------------------------------------|-----------------------------------------------------------|
| territory           | Presidential Scheduled Area Orders in 10 States           | tribal areas in four North-Eastern States                 |
| institution         | advisory TAC                                              | elected District/Regional Councils                        |
| law                 | Governor adapts laws/makes regulations; President assents | council laws on specified subjects; Governor assents      |
| administration      | State continues under reporting/Union directions          | councils manage specified services within State authority |
| justice/finance     | no Schedule-created TAC courts/taxes                      | specified courts, land revenue and taxes                  |
| local participation | PESA extends modified Part IX                             | PESA does not apply                                       |

**Analysis:** [FACT] The Fifth's land-transfer and money-lending regulation powers can be strong, and PESA/FRA deepen community agency. Yet TAC advice and gubernatorial initiative may remain dormant. The Sixth's elected councils provide continuous local law-making and finance, but assent delays, limited subjects, State control and intra-area representation disputes constrain autonomy.

**Named evidence:** *Samatha* illustrates protective land law in the Fifth context; BTC's special design shows adaptable Sixth Schedule autonomy.

**Qualification:** [LIMIT] "Sixth is always better" ignores context, council accountability and non-Sixth alternatives such as Article 371 or strengthened hill councils.

**Verdict:** The best reform imports the Sixth's agency into Fifth Schedule practice without treating either model as institutionally complete.

**Why this earns marks:** It compares on identical axes, uses evidence and avoids a simplistic hierarchy.

#### M5. PESA is a calibrated code of community power, not a universal Gram Sabha veto. Discuss. (15 marks, 250 words)

##### Model solution

**Thesis:** [FACT] PESA section 4 assigns different powers to the Gram Sabha and Panchayats according to the decision; [ANALYSIS] its strength lies in legal precision, not a single maximalist verb.

**Approval:** Gram Sabha approves village-level social/economic plans, programmes and projects before implementation and identifies beneficiaries.

**Certification:** Village Panchayat obtains Gram Sabha certification of fund utilisation.

**Consultation:** Gram Sabha or appropriate Panchayat is consulted before land acquisition and R&R in Scheduled Areas. [LIMIT] Consultation is not statutory universal consent.

**Mandatory recommendation:** Prior recommendation is required for specified prospecting licences/mining leases for minor minerals and for auction concessions, with the statutory holder varying by clause.

**Substantive endowment:** State law must endow ownership of minor forest produce, village-market control, regulation of money-lending/intoxicants, land-alienation prevention/restoration, local-plan/resource control and social-sector oversight.

**Named evidence:** [FACT] PESA's habitation-based village and cultural-resource safeguard recognise living customary institutions. [CURRENT] Official MoPR material lists nine State rule regimes; notification does not prove cross-sector compliance.

**Critical gap:** large Gram Panchayat boundaries, weak records, sectoral-law inconsistency and formal meetings can dilute powers.

**Verdict:** Courts and administrators should enforce the exact statutory verb at each project stage while States strengthen Gram Sabha information, inclusion and remedy.

**Why this earns marks:** It directly proves the proposition with section-specific verbs, then adds implementation and qualification.

### M6. Analyse how the Fifth Schedule, PESA, FRA and judicial decisions regulate land and mining conflicts in tribal areas. (15 marks, 250 words)

#### Model solution

**Thesis:** [ANALYSIS] Tribal land/mining governance is cumulative: no one clearance or consultation substitutes for constitutional regulation, community power, forest-right recognition and sectoral law.

**Fifth Schedule:** Paragraph 5 permits regulations restricting tribal land transfer, allotment and money-lending. [ANALYSIS] It supplies the anti-alienation constitutional base, but the operative State regulation matters.

**PESA:** section 4 requires consultation for acquisition/R&R, mandatory prior recommendation for specified minor-mineral decisions and powers to prevent/restore alienated land. [LIMIT] Major minerals and all projects cannot be swept into one veto claim.

**FRA:** Gram Sabha initiates individual/community/CFR claims; section 5 adds conservation duties. [ANALYSIS] A project must first know whose rights and cultural relationships are affected.

**Cases:** [FACT] *Samatha* invalidated the impugned Andhra Pradesh Scheduled-Area mining leases under the State land-transfer regulation; its nationwide reach must be qualified. [FACT] *Orissa Mining Corporation* required Gram Sabha determination of FRA-linked cultural/religious claims, while MoEF retained the final Stage-II clearance decision.

**Conflict mechanism:** insecure records, debt, acquisition and forest diversion can combine to dispossess communities even where one procedure is formally completed.

**Verdict:** lawful development requires sequenced rights recognition, exact PESA compliance, environmental appraisal, reasoned alternatives and enforceable restoration/R&R.

**Why this earns marks:** It integrates four legal layers, uses two accurately bounded cases and explains the causal mechanism of dispossession.

### M7. Design an accountability reform for Fifth and Sixth Schedule institutions. (20 marks, 250 words)

#### Model solution

**Thesis:** [ANALYSIS] Reform should preserve constitutional asymmetry while making every exercise or non-exercise of power visible, reasoned, participatory and remediable.

**1. Territorial accuracy:** publish current Presidential Orders, habitation maps and council boundaries in accessible local formats; distinguish whole districts from partial coverage.

**2. Governor accountability:** standardise annual Fifth Schedule reports around land alienation, PESA, FRA, services and outcomes; publish them with justified confidentiality exceptions. Require reasoned disposal of TAC advice.

**3. TAC renewal:** fixed meeting calendar, community/expert evidence, public agendas and action-taken statements. [LIMIT] retain its advisory constitutional character.

**4. PESA implementation:** harmonise Panchayat, excise, market, money-lending, land and minor-mineral laws; notify the remaining rules gap; support habitation-level Gram Sabhas and inclusive meetings.

**5. Sixth Schedule capacity:** activity, staff and fund maps; assent timelines and reasons; independent audit; transparent council law databases; strengthen village/council-court training and appeal records.

**6. Land/FRA infrastructure:** geo-referenced but privacy-sensitive land/CFR records, legal aid and restoration tracking.

**7. Project sequencing:** rights determination -> statutory consultation/recommendation -> environmental/social appraisal -> reasoned decision -> monitored R&R/restoration.

**8. Intergovernmental review:** use Articles 275/339 and State departments for capacity and convergence, not command substitution.

**Qualification:** digitisation can exclude remote communities; custom cannot override equality and dignity.

**Verdict:** accountability should align who decides, who implements, who records reasons and who can obtain a remedy.

**Why this earns marks:** It offers a sequenced institution-specific design, protects autonomy and attaches qualifications to each reform logic.

## M8. Should Sixth Schedule-style autonomy be extended to Ladakh or other tribal regions? Critically examine. (20 marks, 250 words)

### Model solution

**Thesis:** [ANALYSIS] Extension should follow institutional fit, not population alone: the issue is which legal form best protects land, culture, representation and accountable development within the relevant State/UT structure.

**Case for extension:** elected territorial councils can legislate on land/custom, manage services, raise specified revenue and provide continuous local voice. [CURRENT] Ladakh's official dialogue concerns land, culture, employment and empowerment of hill councils; no Sixth Schedule status has been enacted.

**Why the model attracts demands:** [FACT] Sixth Schedule councils are stronger than a Fifth Schedule TAC and ordinary administrative councils because they combine legislative, executive, judicial and fiscal powers.

**Limits:** the Schedule presently operates in four named States; council boundaries can create minority-insider disputes; gubernatorial assent, weak staff/funds and State overlap can reduce promised autonomy. Ladakh is a UT with existing hill councils and strategic/ecological constraints, so transplantation requires careful legal design.

**Alternatives/complements:** an Article 371-type provision, strengthened elected hill councils, land/employment legislation, cultural-language guarantees, legislative representation or a tailored parliamentary framework may better match some regions.

**Decision test:** territorial compactness; customary institutions; consent of affected groups; minority safeguards; fiscal viability; relation with State/UT legislature; judicial and audit accountability.

**Qualification:** [LIMIT] high ST population is evidence of need, not a self-executing constitutional entitlement to one model.

**Verdict:** consider Sixth Schedule extension where territorial self-government is the proportional solution, but choose through transparent consultation and enacted constitutional design rather than slogan or analogy.

**Why this earns marks:** It uses current Ladakh control, compares institutional benefits and costs, offers alternatives and answers "should" with a conditional test.

## Final consolidated register notes

### Article 244 and territorial vocabulary

| Rapid recall    | Rule                                                                                     |
|-----------------|------------------------------------------------------------------------------------------|
| Article 244(1)  | Fifth Schedule: Scheduled Areas/ST administration outside the four Sixth Schedule States |
| Article 244(2)  | Sixth Schedule: tribal areas in Assam, Meghalaya, Tripura, Mizoram                       |
| Scheduled Area  | President declares/changes through the Fifth Schedule order route                        |
| tribal area     | Sixth Schedule constitutional territorial category                                       |
| Scheduled Tribe | Article 342 President notification; Parliament changes by law                            |
| Article 244A    | Parliament may create an autonomous State within Assam                                   |



|                |                      |                      |
|----------------|----------------------|----------------------|
| AREA STATUS != | TRIBE STATUS !=      | COUNCIL ORGANISATION |
| President      | President/Parliament | Governor             |
| Fifth Schedule | Article 342          | Sixth Schedule       |

## Constitutional rationale and history

- Colonial excluded/partially excluded administration concentrated executive control.
- A.V. Thakkar and Gopinath Bordoloi subcommittees informed the two-model constitutional settlement.
- Fifth Schedule = protective supervision.
- Sixth Schedule = territorial self-government.
- PESA = Fifth Schedule self-government layer.
- FRA = forest-right recognition and community-resource governance.
- Best thesis: differentiated administration is legitimate as substantive equality only when it produces agency and accountability.

## Fifth Schedule State and declaration control

10 STATES

AP | Telangana | Chhattisgarh | Gujarat | Himachal Pradesh  
Jharkhand | Madhya Pradesh | Maharashtra | Odisha | Rajasthan

- Only notified territory is scheduled; not the whole State.
- Official criteria: tribal preponderance; compactness/reasonable size; viable unit; comparative economic backwardness.
- Criteria guide; Presidential Order creates status.
- Consultation with Governor is not consent.

## Fifth Schedule institutional chain

State administration continues

- > Governor report annually / when required
- > President
- > Union directions on administration

- No automatic local-body or Union takeover.
- TAC: maximum 20; ST Assembly-representation rule; advice on matters referred by Governor.
- TAC is advisory, not legislative.
- Governor may non-apply/adapt parliamentary or State laws, including retrospectively.
- Governor regulations: peace/good government; land transfer; land allotment; money-lending.
- Consult TAC where it exists.
- Regulation has no effect until President assents.
- Do not claim unqualified personal gubernatorial discretion.

## Article 275 and Article 339

| Provision | Recall                                                                  |
|-----------|-------------------------------------------------------------------------|
| 275(1)    | grants for ST welfare schemes and raising Scheduled-Area administration |
| 339(1)    | presidential commission on Scheduled Areas/ST welfare                   |
| 339(2)    | Union directions on essential State ST-welfare schemes                  |

- Dhebar and Bhuria are the two standard commission names.
- A grant supports capacity; it does not prove outcomes or devolution.



## Sixth Schedule architecture

### STATE

- > autonomous district
  - > different ST areas may become autonomous regions
  - > District Council / Regional Council
- Four States only: Assam, Meghalaya, Tripura, Mizoram.
- Autonomous district remains inside State executive authority.
- Ordinary council: up to 30; up to four nominated; rest elected; elected term ordinarily five years.
- BTC special design: 46 = 40 elected + 6 nominated.
- Assam examples: BTC, Karbi Anglong, Dima Hasao/North Cachar Hills.
- Meghalaya: Khasi, Jaintia, Garo.
- Tripura: TTAADC.
- Mizoram: Chakma, Lai, Mara.

## Sixth Schedule powers and limits

| Power       | Core                                                                                                                                  | Limit                                       |
|-------------|---------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------|
| legislative | land, non-reserved forest, water, shifting cultivation, village administration, chiefs, inheritance, marriage/divorce, social customs | specified subjects; Governor assent         |
| executive   | schools, dispensaries, markets, ferries, fisheries, roads and entrusted functions                                                     | transfer/staff/funds vary                   |
| judicial    | village/council courts for specified tribal-party matters                                                                             | not complete replacement of ordinary courts |
| fiscal      | land revenue and specified local taxes; funds                                                                                         | audit and legal limits                      |
| minerals    | royalty share mechanism                                                                                                               | not mineral ownership                       |

- Paragraphs 3A/3B = special Assam additional subjects.
- Article 244A = autonomous-State enabling route, not current ADC status.
- State-specific paragraphs govern application of laws; never use one universal formula.
- Governor has specified assent, inquiry, suspension and dissolution/supersession controls.
- President is not routine assent authority for council laws.

## Fifth-Sixth exact comparison

| Fifth                                   | Sixth                                                           |
|-----------------------------------------|-----------------------------------------------------------------|
| Scheduled Areas in 10 States            | tribal areas in four States                                     |
| President declares territory            | Governor organises districts/regions within constitutional list |
| TAC advice                              | elected council government                                      |
| Governor law adaptation/regulations     | council legislation                                             |
| President assents regulations           | Governor assents council laws                                   |
| State administration + Union directions | council functions within State authority                        |
| no TAC courts/taxes                     | specified courts/taxes                                          |
| PESA applies                            | PESA does not apply                                             |

**Memory:** Fifth gives a constitutional guardian plus PESA; Sixth gives a bounded territorial government.

## PESA power code

APPROVE local plans/programmes/projects  
IDENTIFY beneficiaries  
CERTIFY fund utilisation  
CONSULT acquisition and R&R  
RECOMMEND minor-mineral licences/leases/concessions  
MANAGE minor water bodies at appropriate Panchayat level  
OWN minor forest produce through State-law endowment  
PREVENT + RESTORE land alienation  
REGULATE money-lending, markets, intoxicants  
CONTROL social-sector institutions, local plans/resources

- PESA applies to Fifth Schedule areas only.
- Village can be habitation/hamlet based.
- State law must respect custom and community-resource management.
- Acquisition-linked project planning/implementation remains coordinated at State level.
- State law should endeavour to follow the Sixth Schedule pattern in district-level administrative arrangements.
- ST seats at least half; all chairperson posts reserved for STs.
- Consultation != recommendation != approval != universal veto.
- Official control on 19 Aug 2026: nine State rule regimes listed; Odisha not separately listed; Jharkhand Rules 2025 listed.

## FRA linkage

- Gram Sabha initiates and verifies claims; SDLC and DLC complete the statutory chain.
- IFR != community rights != Community Forest Resource rights.
- CFR: protect, regenerate, conserve or manage customary community forest resource.
- Section 5 links rights with conservation duties.
- FRA does not transfer all forest or mineral ownership.
- PESA asks who participates with what local power; FRA asks who holds which forest right.

## Land, mining and case law

Fifth Schedule regulation

- + PESA decision-stage power
- + FRA rights determination
- + State land/mineral law
- + acquisition/R&R
- + forest/environment clearance
- = lawful cumulative decision

- *Samatha* (1997): Andhra Pradesh Scheduled-Area land-transfer regulation invalidated impugned private mining leases; always state the State-law boundary and later scope qualification.
- *Orissa Mining Corporation* (2013): Gram Sabha decided FRA-linked community/cultural/religious claims; MoEF made final Stage-II decision in light of those decisions.
- Never write "Niyamgiri = universal Gram Sabha veto".
- Royalty sharing != consent; compensation != recognition of sacred/community rights.

## Article 371 and ordinary Panchayat distinction

| Model                                      | Do not confuse with                              |
|--------------------------------------------|--------------------------------------------------|
| Article 371A/371G and other 371 provisions | automatic Sixth Schedule council                 |
| ordinary Part IX Panchayat                 | PESA habitation Gram Sabha or ADC                |
| PESA                                       | Sixth Schedule                                   |
| hill council created by statute            | constitutional ADC unless Sixth Schedule applies |

- Article 243M excludes Scheduled/tribal areas from automatic Part IX application.

- PESA extends modified Part IX to Fifth Schedule areas.
- Custom remains subject to constitutional rights and valid law.

### Accountability and reform recall

1. Publish current area/council boundaries.
2. Standardise and publish Governor reports.
3. Give TAC fixed calendars, evidence and action-taken responses.
4. Harmonise PESA with sectoral land, market, excise, money-lending and mineral laws.
5. Map council functions, staff and funds.
6. Set transparent assent timelines and reasons.
7. Build accessible land/CFR records and restoration remedies.
8. Sequence rights, participation, appraisal, decision and R&R.
9. Use ITDAs/convergence as administrative support, never substitutes for constitutional bodies.
10. Protect women, PVTGs and internal minorities within local autonomy.

### Last-minute PYQ routes and traps

| Year/Q   | Demand                                               | Control                                            |
|----------|------------------------------------------------------|----------------------------------------------------|
| 2019 Q50 | schedule protecting tribal land from mining transfer | exact paper verified; local key unavailable        |
| 2022 Q73 | Fifth Schedule consequences                          | neutral demand only; no reconstructed wording/key  |
| 2023 Q39 | notification and administrative hierarchy            | exact paper verified; key unavailable              |
| 2024 Q84 | who declares ST and State-specific status            | official key B                                     |
| 2025 Q56 | State executive power/Union takeover trap            | official key D                                     |
| 2026 Q57 | schedules, tax exemption and Panchayat reservation   | exact paper; provisional key not recorded/inferred |

1. Fifth = 244(1); Sixth = 244(2).
2. President declares Scheduled Area.
3. Governor does not declare ST list.
4. State executive power continues.
5. TAC advises.
6. Fifth regulation -> President assent.
7. Sixth council law -> Governor assent.
8. ADC ordinary ceiling is not universal composition.
9. Reserved forests excluded from ordinary paragraph 3 forest field.
10. PESA applies to Fifth, not Sixth.
11. Consultation is not universal consent.
12. Niyamgiri kept final Stage-II decision with MoEF.

### Rapid Mains spines

#### Fifth Schedule

Article 244(1) -> Presidential territory -> State power + Governor report + Union directions -> TAC -> law adaptation/regulations -> PESA/FRA -> dormancy/accountability -> qualified protective-governance verdict.

#### Sixth Schedule

Article 244(2) -> district/region -> composition and Assam exceptions -> legislative/executive/judicial/fiscal powers -> Governor/State/Parliament limits -> capacity and internal representation -> bounded-self-government verdict.

## PESA

Article 243M exclusion -> habitation village -> exact verbs -> sectoral-law implementation -> FRA linkage -> records/capacity/remedy -> calibrated-community-power verdict.

## Land/mining

land status and State regulation -> PESA stage -> FRA rights -> environment/mineral/acquisition law -> *Samatha/OMC* with limits -> cumulative-compliance verdict.

## Final twenty-second recall

### FIFTH:

President area | Governor report/regulate | TAC advise | President assent | PESA

### SIXTH:

AMTM | district/region | council laws/services/courts/taxes | Governor assent

### RIGHTS:

PESA verbs + FRA claims/CFR + State land law + bounded cases

### VERDICT:

protection must become accountable community agency